

NIMS'
SECOND MASSACHUSETTS
BATTERY

NIMS'
SECOND MASSACHUSETTS
BATTERY

The Project Gutenberg eBook of History of the Second Massachusetts Battery (Nims' Battery) of Light Artillery, 1861-1865

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: History of the Second Massachusetts Battery (Nims' Battery) of Light Artillery, 1861-1865

Author: Caroline Elizabeth Whitcomb

Release date: December 24, 2018 [eBook #58531]

Language: English

Other information and formats: www.gutenberg.org/ebooks/58531

Credits: Produced by David King and the Online Distributed Proofreading Team at <http://www.pgdp.net>. (This file was produced from images generously made available by The Internet Archive.)

*** START OF THE PROJECT GUTENBERG EBOOK HISTORY OF
THE SECOND MASSACHUSETTS BATTERY (NIMS' BATTERY) OF
LIGHT ARTILLERY, 1861-1865 ***

Footnotes have been collected at the end of the text, and are linked for ease of reference.

History of the Second Massachusetts Battery (Nims' Battery) of Light Artillery



Capt. Ormand F. Nims in War Time.

**HISTORY OF THE SECOND
MASSACHUSETTS BATTERY
(NIMS' BATTERY)
OF LIGHT ARTILLERY
1861-1865**

**COMPILED FROM RECORDS OF THE REBELLION,
OFFICIAL REPORTS, DIARIES AND ROSTERS**

By
CAROLINE E. WHITCOMB

THE RUMFORD PRESS
CONCORD, NEW HAMPSHIRE
1912

CONTENTS

NIMS' SECOND MASSACHUSETTS BATTERY	<u>7</u>
NIMS' BATTERY ASSOCIATION	<u>73</u>
LIFE OF COL. ORMAND F. NIMS	<u>79</u>
ROSTER OF SECOND MASSACHUSETTS BATTERY	<u>85</u>

LIST OF ILLUSTRATIONS

Capt. Ormand F. Nims in War time	<i>Frontispiece</i>
Battery Encampment at Stewart's Place, Baltimore, 1861	12
Landing of Federal Troops from Transport, Laurel Hill	38
Second, Fourth, and Sixth Massachusetts Batteries at Baton Rouge	47
Col. Ormand F. Nims	73
Old Nims Homestead at Deerfield, Mass.	79

PREFACE

During the years which have followed the close of the Civil War, there have appeared many histories of various companies, regiments and different divisions of the volunteer troops, all of value both to the historian and to the participants in the great struggle. So far as can be learned, almost nothing has been published of the military history of the 2d Massachusetts Light Artillery, better known as Nims' Battery, save a few short sketches necessarily incomplete and sometimes inaccurate.

In 1870, at the Anniversary Dinner of the Nims' Battery Association, the matter of "publishing a history of the battery during its service throughout the war of the Rebellion, 1861-1865," was brought forward and a committee was appointed to take the necessary steps toward this work. The committee, which consisted of Col. O. F. Nims, J. S. Knowlton, John R. Smith, A. M. Norcross, D. M. Hammond and A. B. Burwell, issued a call to the members of the battery asking each one to forward to the committee any information in his possession such as diaries, letters, newspaper clippings or matter of any kind that might aid in the work, and urging the hearty coöperation of all "to the end that the glorious record made by Nims' Battery—second to no other—may not be suffered to perish in oblivion in our day and generation, but be handed down to our children and children's children for all time."

So far as can be ascertained, nothing further was done in the matter and the only records to be found are those incorporated in the general histories of the war or in war records, which are not always easy of access.

At the request and through the generosity of a member of the Nims' Family Association, the writer has prepared the following brief account of the military career of Nims' Battery, together with the life of its commander, the history of the Battery Association and the complete roster. After a period of fifty years, it has been impossible to gather together the personal

reminiscences and to bring before our readers the life of an artillery man as clearly as we could wish. We trust, however, that there will be found in the pages of this book a fairly complete and reasonably accurate record of the military career of this organization.

At a meeting of the Nims' Battery Association held on April 19, 1912, the manuscript of the entire history was read to the members present and received their support and commendation.

The author wishes to express her obligation to all who have assisted in any way in the preparation of this work, and especially to W. G. Hidden, Fitchburg, Mass., for the loan of diary, newspaper clippings and suggestions, to Capt. E. K. Russell for his comments and suggestions and to Mrs. Mathews, stepdaughter of Col. O. F. Nims for the loan of papers, letters and pictures once the property of Colonel Nims. Thanks are also due Clarence K. Knowlton for the copy of the diary of his father, J. S. Knowlton, to Mrs. C. B. Maxwell for the diary of C. B. Maxwell, to Mr. George Houghton, Newport, for the diary of his father, George Houghton.

The expense of the preparation and publication of the book has been borne to a large degree by Mr. E. D. Nims of Kansas City whose generosity is appreciated both by members of the Battery and by the Nims' Family Association.

THE AUTHOR.

Books Consulted in Preparation of this Work

War of the Rebellion, Official Records of the Union and Confederate Armies.

Massachusetts in the Civil War. I. L. Bowen.

History of the Civil War. B. J. Lossing.

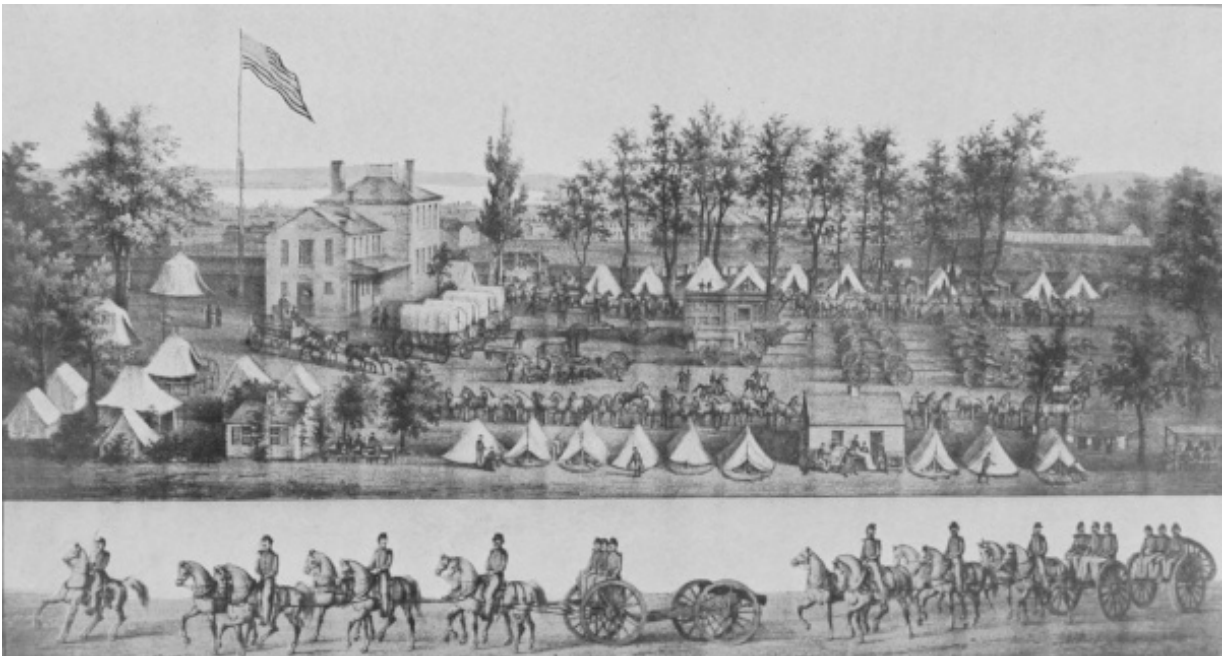
Putnam's Record of the Rebellion. Moore.

Century Company's War Book.

The Mississippi. J. V. Greene.

The Nineteenth Army Corps. Irwin.

Regimental and Battery Histories of New Hampshire and Massachusetts.



Camp of the Massachusetts Second Company Light Artillery, at Stewarts
Place, Baltimore

NIMS' SECOND MASSACHUSETTS BATTERY

Few batteries during the Civil War saw more actual service than that known officially as the 2d Massachusetts Light Artillery, but more generally called Nims' Battery. Its career is well worth recording and the part it played in the campaigns of the Department of the Mississippi and the Gulf was by no means inconsiderable in the history of the war.

Previous to 1861, there existed in Boston a military organization called the Boston Light Artillery or Cook's Battery. When the news came from Baltimore that the Sixth Regiment had been fired on and the city was in the hands of rioters, General Butler who was then in Philadelphia, asked that this organization be sent forward immediately to the scene.

It was midnight of April 19, 1861, when the telegraph brought the request: before the night of the 20th everything was in readiness and in the early morning of the 21st the first battery from Massachusetts was on its way to Baltimore for a period of three months' service.

It had not left Boston, however, before Governor Andrews gave orders for the formation of a second battery and designated Major Moses Cobb as its commander. Recruiting headquarters were opened on the 20th of April at the Boston Light Artillery Armory under Major O. F. Nims, and in less than two days two hundred men applied for enlistment. "Every member, officers and men, was the greenest of raw material, but they were an intelligent set of fellows and took to drilling as a duck to water." *Colonel Nims*.

Most of the men were from Boston and vicinity.

The first public appearance of the battery was on June 17, when a parade was held on Boston Common, and on July 4 a detachment fired a salute at morning, noon and night from the same historic spot.

On July 5 the battery was ordered to the camp of instruction at Wollaston Heights, Quincy, on what was known as the Adams estate, which

consequently gave to the camp the name of Camp Adams. Here for a month, the men were drilled in all the movements from the position of a soldier to battery drill in the field and also as infantry and cavalry.

Target practise, too, was introduced and for that purpose targets were placed at several points with reference to distance and correctness in shooting. These afforded an excellent opportunity for the men to become familiar with their guns.

On the 31st of July, the command was mustered into the United States service under the name of the 2d Massachusetts Light Artillery, and from the same date the officers were commissioned. This was the first three years' battery from the state of Massachusetts.

It was supposed that Major Cobb would take the battery into service, but he left the state abruptly and Governor Andrews sent Adjutant General Schouler down to camp to ask Major O. F. Nims, an experienced officer, to take command and get to Washington as soon as possible.

Nims replied: "I will accept a commission whenever it is tendered me but I will not ask for one." It was then suggested that the company be called on to elect a captain, but this did not meet with Major Nims' approval as he had made up his mind not to owe his position to the men under him. "No," said he, "make me an officer if you will and then ask them what they think of it." He was therefore given the rank of captain, the men were lined up and informed of what had been done. A wild shout of approval was their reply, the men throwing their caps in the air as a further demonstration of their satisfaction.

The roster of commissioned officers then was as follows:

Captain, Ormand F. Nims.

Senior 1st Lieut., John W. Wolcott.

Junior 1st Lieut., John Bigelow.

Senior 2d Lieut., Geo. G. Trull.

Junior 2d Lieut., Richard B. Hall.

NON-COMMISSIONED

1st Sergeant, Lowell A. Chamberlain.

Quarter Master Sergeant, Alden N. Norcross.

Chief of Piece with rank of Sergeant, Frank J. Whitcher, Warren K. Snow, Augustus B. Burwell, Henry P. Cheever, Orlando C. Harvey, Edward K. Russell.

Gunners with rank of Corporal, Joseph S. Knowlton, Francis E. Howe, Joseph Ackerman, Wm. W. Jordan, Converse F. Livermore, Joseph W. Greenleaf.

Chief of Caisson with rank of Corporal, Henry M. Wadsworth, Frederick A. Bellows, Edwin A. Andrews, Chas. F. Sherman, Lucian A. Hodgdon, S. S. Lincoln.

Artificers, C. W. Cobb, H. E. Brown, Seth H. Hatch, Peter Jacobus, Joseph S. Haven, Reuben B. H. Gould.

An old artillery officer for many years in the English service visited the camp frequently and said that he never saw better material than the men in Nims' Battery. "They have," said he, "intelligence and will, and a very few months of active service will find them in the front rank of merit in their class." *Boston Journal*, August 8, 1861.

Preparations were made to break camp August 7, but owing to an accident which befell the machinery of the steamer which was to convey the battery to New York it was necessary to wait until the following day. A quotation from a Boston paper dated August 8, 1861, is as follows:

"The Light Artillery Company commanded by Capt. O. F. Nims, after some delay as to their departure, left this city this morning, shortly after one o'clock, on the Providence Railroad, for New York and Washington, via Stonington. They were paid off yesterday afternoon for their time of service up to departure. For two days the scene at the camp at Quincy was lively indeed, the men being actively engaged in packing and preparing for departure. They left the old quarters at shortly after 7 o'clock last evening and marched over the turnpike to this city, arriving at the Providence Railroad Station at a few minutes past 10 o'clock. At the depot were a considerable number of people who had been waiting for several hours for the arrival of the company.

"As soon as the battery arrived at the station, the work of loading the gun carriages, wagons, horses, etc., was actively begun, each of the company lending a hand, and the work was accomplished in about two hours. This done, a few moments were given to saying a parting word to friends, after which the men were ordered to 'fall in,' and marched to the cars. On their departure, friends and lookers-on joined in giving three hearty cheers, which were enthusiastically responded to by the members of the company.

"On the train were 156 men, 140 horses, and 21 carriages, including the four baggage wagons, well loaded with the camp equipage and baggage of the men. They were supplied with about

1200 rounds of cartridges, including a considerable amount of grape and canister. The men have three days rations with them."

At the time of organization, the uniform adopted was of a semi-zouave type, dark blue with red trimmings, the trousers loose to the knee, with russet leather leggings—grey shirt, a cut away jacket buttoned at the top with a loop, and a regular military cap trimmed with red. This made a very attractive uniform. Unfortunately during the stay in Quincy, the salt air took out the color, and before going into service the men were provided with regulation United States uniforms.

The guns were fine United States bronze ordnance guns from the Watervliet Arsenal, N. Y., rifled at Alger's Foundry in South Boston and throwing a shell made by Schenkel, a very ingenious German. One kind of shell was in the shape of a sugar loaf with hollowed bore filled with papier-maché and weighing ten and one-half pounds, a pound of powder being used to fire it. When discharged, the papier-maché would swell out, fill the grooves and give the shell a twist. The noise the projectile made on leaving the gun was very similar to that of a locomotive going through a tunnel. When the shell exploded, it flew all to bits—not two or three fragments but forty or fifty pieces.

Another shell prepared by Schenkel was exceedingly deadly. It was filled with bullets and between the bullets sulphur was poured in to keep them in place. The horses were strong Vermont horses worth \$150.00 to \$200.00 each.

Boston Journal, February 22, 1903.

So the journey began, by rail to Stonington, then by boat to New York, then to Jersey City and over the old Camden and Amboy road to Philadelphia, arriving there Monday morning, August 11, 1861.

A quotation from the *Philadelphia Evening Bulletin* says:

"Captain Nims' celebrated Light Artillery consisting of six pieces of rifled cannon, with caissons, ordnance wagons, one ambulance, together with 140 horses arrived at Washington Avenue, at five o'clock. The company consists of 150 men who are strong, hearty fellows just fitted for artillery service. During the delay before starting for Baltimore, the men sang several pieces, among them *America* and *Glory Hallelujah*. The Union Volunteer Refreshment Committee provided them with breakfast and the men were loud in their praise of Philadelphia beneficence."

On arriving at Baltimore the men went into camp on the estate of the Confederate General J. E. B. Stuart on West Baltimore Street, the camp bearing the name of Camp Hale. Here drill was resumed in earnest, battery, piece and sabre drill and target practise.

A letter to the *Boston Journal* bearing the date August 18, 1861 gives the following picture of camp life.

CAMP HALE, BALTIMORE,

August 18, 1861.

To the Editor of the *Boston Journal*:

We came through Baltimore on the 12th, on our way from Camp Adams to this encampment, which is situated on West Baltimore Street, is a half-mile outside of the city, and in General Stuart's Park, which is a beautiful place for an encampment, though as a park it is pretty well used up. General Stuart is a general in the rebel army, and at this place there were seized five hundred stand of arms. We have plenty of fruit here, but do not eat much. The Baltimoreans use us well and treat us as if we were their own citizens, but this may be owing somewhat to our guns. There are a good many secessionists here, but they keep very quiet and we do not have much to say to them. Coming through Baltimore we enlivened the streets with "Glory Hallelujah," and some savage faces were shown to us, but the sight of our seven-shooters kept them very quiet.

We have just returned from bathing, and for this purpose we go within one mile of the Relay House, the roads being lined with thick woods. Houses are very scarce outside of the city, and very old and small, looking like huts. On Saturday we marched to the Pratt Street depot for the purpose of receiving and escorting two of our Massachusetts regiments, but they did not arrive, thus disappointing us and themselves, we have no doubt. The captain has just learned that some arms are stored in Pratt Street, and has ordered our detachment to attend to examining the premises and putting things in order. To do this we take one baggage wagon, one gun, and twenty-five men, each armed with two seven-shooters and sabre, and thus we make easy work of it

We like our officers. Our captain is a man in the right place. We all like him, for he looks out for the boys. And we have a fine set of men, are very happily situated and every evening we have camp life in full activity.

Our camp is somewhat different from that of a regiment, not having quite such strict orders to conform to, and having no guard duty to perform, that being done by the Fourth Pennsylvania Regiment. We are in excellent health, having had but one sick man since we left Camp Adams. It is probable we shall remain here for the present. Today is Sunday and most of the men are writing home. It is quite warm, but we have had no warmer weather here than we found at home. All letters should be directed to "Camp Hale," Baltimore, care Capt. O. F. Nims, Second Company Massachusetts Artillery.

Encamped at Baltimore at the same time was the 17th Massachusetts, and a letter written by a member of that regiment follows:

To the *Boston Journal*, September 5.

"Nims' Artillery is at our left hand and a better set of fellows, officers and men were never brought together. May we remain together 'in union and for the Union' is the hearty wish of our officers. Our band goes over to their headquarters twice a week and the enlivening strains cause joy to them and will help to unite the two commands in still stronger fetters than the mere fact that we are all 'Bay State boys.' That is a strong card out here and when we unite in symphony as well as harmony it's a pretty good tune."—

The boys won the respect and esteem of the citizens of Baltimore, even of the Southern sympathizers, and on October 16, the loyal citizens of Ward 19 presented to the battery a flag 20 x 35 feet which was mounted on a flag staff 100 feet in height prepared by the men.

The Baltimore *Clipper* gives an account of the event:

"Yesterday afternoon, at 4 o'clock, a large flag 26 x 20 feet, was raised to the top of the pole which is 100 feet high, erected by the members of Nims' Boston Battery, at Camp Andrew, West Baltimore Street extended. At the appointed hour the line was formed in the rear of the pole, and the six-rifled cannon placed in front, in a line facing the city. The 17th Massachusetts Regiment then formed a hollow square on the north side, when the Rev. Mr. Marshall, of the Twelfth Presbyterian Church, Franklin Street, by invitation, advanced to the center of the square and offered a most fervent prayer, imploring divine mercies upon this Government.

"At a signal given the flag was run to the top of the pole, during which the band of the 17th Massachusetts Regiment struck up the Star Spangled Banner, and at every tap of the bass drum a gun was fired. Three cheers were then given for the Stars and Stripes, which were joined in by the many hundreds present. Upon quiet being restored, the band played Yankee Doodle and Hail Columbia, and at each sound of the bass drum there was a gun fired. This manner of salute, which is very common in Boston, is something new here, and created considerable applause.

"After the ceremonies had ended, we were invited to take a stroll through the camp, which we accepted, and were much gratified with our visit. We found the men to be the most gentlemanly and agreeable set of fellows it has been our pleasure to meet for a long time. This battery does all its own work, such as horse-shoeing, harness making, saddling, etc.

"From the general appearance of things, it looks as if they intended to quarter there for the winter, although all with whom we conversed seemed anxious to go to the seat of war. Their pieces are all marked No. 2, but this is certainly the 'No. 1' Battery, and is so considered by all who know them, and any person who does not know them to be such, only need witness one of their drills to be convinced of the fact. The flag was a present from the Union men of the 19th Ward."

Still another clipping from a Boston newspaper for the truth of which we will not vouch, however, is entitled "None but the Brave deserve the Fair." "We learn by a private letter written by a member of 'Nims' Light Battery' from Baltimore, that its members are a little inclined to make sad havoc with the affections of the young ladies of that city. 'Within the last few weeks three or four marriages have taken place. The "Battery boys" have been in great favor with the Union people ever since their arrival in the city, and by their gentlemanly behavior and good conduct have strengthened their friends' worthy appreciation. Within a fortnight one of them, a young man of Boston, led to the altar a daughter of one of the most respectable and wealthy Union citizens of Baltimore. One of the lieutenants and two privates have also enjoyed the pleasure of married life."

On the 4th of November the battery, together with the 4th Wisconsin Regiment, Col. H. E. Paine, and an independent company of Pennsylvania cavalry, Captain Richards, started on an expedition down the Chesapeake, landing at Whitehaven, Md., on the Wicomico River and marching to Princess Ann where they spent the night in the court house. The next day, the march was continued to Snow Hill. On that day, the men experienced some of the minor hardships of a soldier's life, for we read in the diary of George Houghton:

"A very hard march in the rain over awful roads of sand and mud and the last two miles the water two feet deep. Some of the infantry gave out as this was their first experience and we took them on our wagons and caissons. After traveling twenty miles we had to go to bed without any supper for the *Jersey Blue*, the boat carrying our rations, lost its way up the river and was a day late. I slept in the guard tent and most froze to death."

Another says: "We were quartered in a negro church but no peace for the weary or hungry there. As our rations had not arrived, we came out minus on the supper question, all the food having been secured for the infantry, who had seen hard marching and wading for a first experience."

The day previous to the arrival at Snow Hill had been election day and the vote in the town had stood one majority in favor of secession.

After a day or two in the negro church, camp was made in the woods near by in connection with the 4th Wisconsin and the cavalry. Sibley tents were given out and as one of the privates writes home: "They are real nice and

comfortable though there is no means for hanging up clothes. We have purchased a camp kettle and are cooking by detachments."

The appearance of the country was unfamiliar to our New England boys and one writes: "I've scarcely seen anything that deserves to be called a hillock and the soil is either wet, sandy, or swampy." Quite a change from the rock ribbed hills and mountains of the homeland. However, while critical of soil and landscape, Maryland oysters met with universal approbation. Baked beans too had a familiar taste though sometimes when baked in a Dutch-oven underground the sand found its way in, giving a flavor not approved by Bostonians.

The purpose of this Eastern Shore campaign as it was called was to make a demonstration of Union forces in Somerset and Worcester counties, Md., where the feeling was strong for secession and where troops for the Confederacy were being recruited. On November 14, camp was broken at Snow Hill and the battery marched sixteen miles to Newtown, Md., where it joined the larger body of troops under General Lockwood.

The whole force now consisted of detachments from the 4th Wisconsin, 21st Indiana, 6th Michigan, 5th New York, 2d Delaware, Pursell's Legion of Maryland, 17th Massachusetts, Richard's Cavalry and the 2d Massachusetts Light Battery all in command of General Lockwood.

November 13, General Dix had issued a proclamation^[1] to the inhabitants of Accomac and Northampton counties, Virginia, urging them to peace and loyalty. To enforce this proclamation General Lockwood with his brigade left Newtown and went by way of Drummondtown and Belleville to Eastville toward the end of the peninsula.

The battery arrived at Drummondtown, November 21. This was Thanksgiving Day and we read, "Poultry very plenty on the way. Bought (?) two turkeys and a goose for our dinner. Grand mistake of Corporal S. in boiling a chicken with a bar of soap."

On the way from Drummondtown to Eastville scouting parties were sent out and in these the members of the battery took part capturing seven six-pound guns, several hundred muskets, ammunition, and a brass twelve-pound Howitzer which had been buried in the woods. December 1, a grand review was held by General Lockwood.

As it was evident the Confederate forces had left the country and the purpose of the expedition had been accomplished, preparations were made for the return to Baltimore.

Accordingly on December 12, the battery again went on board the *Pocahontas* and returned to its former camp in Baltimore after an absence of forty-seven days during which "the only sanguinary occurrence was the capture and slaughter of turkeys, geese, and other fowls for which severe punishment was meted out by General Lockwood."

One of the men in a letter written home at this time writes: "We were amused somewhat at one time on the trip by the astonishment of an old darky who seeing our brigade inquired, 'Has all you genn'men got names?' and while we were waiting several days near the landing for transportation we spent our time out of doors and bathing in the waters of the bay which we thought pretty good for December."

On the 18th of December, Lieutenants Wolcott and Bigelow resigned to accept positions in a Maryland battery. Second Lieutenants Trull and Hall were promoted to their positions and the vacancies were filled by the commissioning of William Marland of Andover and Sergeant Warren K. Snow of Boston as second lieutenants.

Life at Camp Andrew from December till the following February was uneventful though by no means idle. The men worked hard, drills were held almost daily furnishing perhaps an explanation for the later record of the battery when real warfare began. In regard to this Capt. E. K. Russell writes:

"One of the things that won the love of the Union men of Baltimore was the frequent battery drills through the streets of that city. Captain Nims was always in command and the rapid movements of the battery as a whole, in sections, or single guns, stationed at certain points to command all avenues of approach at given points were simply marvellous. Much of the work was done by the bugle and if the bugler was not at hand our captain carried a small one under his arm and this would ring out the commands with a snap so that not only the men took notice but even the horses recognized the calls and jumped into the movements with a will."

It is evident that Captain Nims had a high ideal of what a battery should be and spared neither pains nor effort in his endeavor to reach this ideal. "This morning, drill. We jumped ditches, pond holes, anything that could be jumped, ran up banks six or eight feet high and then had a run down street." "Had a foot drill today and it was rough double quick—then the captain gave us instructions on dress parade." "Sabre drill on horseback." "Spent about all day cleaning up harnesses, horses, etc. Captain came around and examined them." And so on day after day.

Naturally new conditions of life prevailed and as some one has said "Citizens had to be made into soldiers." The regret manifested by the people of Baltimore when the battery was ordered south speaks well for the conduct and character of its men. Discipline of course was strictly maintained and we are not surprised to read in one diary, "Privates — and — had to walk in barrels eight hours a day for three days"; or "— was threatened with a barrel for missing roll call this morning." But certainly this does not seem like a very heinous offence to the civilian.

Letters from home were eagerly welcomed. In one diary opposite the date December 25 we read "Letter from home—good Christmas present that"; and another writes "I don't get my letters so often as I wish I did." Boxes too were gladly received and their contents shared with less fortunate comrades.

A quotation from the *Boston Journal* of February gives a picture of a social event in camp. "The first grand ball of the battery came off at Stewart's Hall, Baltimore, on Monday evening and was a grand success. The floor managers and musicians were all members of the battery. The order of dances consisted of a grand promenade, four quadrilles, some fancy dances and wound up with a 'walk around' by Mr. C. We hope to have our next ball in Boston among our friends."

It was expected that the battery would now be attached to the Army of the Potomac but on the organization of Gen. B. F. Butler's expedition, Captain Nims and his men were assigned to the Department of the Gulf and the Mississippi. Accordingly on February 25, 1862 the battery left Baltimore and went by steamer *Columbia* to Fort Monroe camping near Hampton in view of the mouth of the James River and of Hampton Roads. Here the men witnessed the destruction of the warships *Congress* and *Cumberland* by the

ram *Merrimac* and the encounter between the *Monitor* and the *Merrimac*. The following interesting account of the same is taken from a record written by S. P. Skilton, a member of the battery.

"On the 8th of March at noon we heard heavy firing toward Newport News and the steam frigates *Roanoke* and *Minnesota* and quite a lot of gunboats went up that way engaging the battery at Sewall's Point though their fire fell far short of it. The old steam frigate *Merrimac* had been cut down and iron clad by the Confederates and was whipping our vessels, as they were all wooden ones and could make scarcely any impression on the ironplated monster. After about an hour's hard fighting the *Merrimac* ran her prow into the *Cumberland*, causing her to fill with water and rendering her useless.

"Commodore Morris would not surrender nor haul down the flag but kept at work at the guns till water covered the decks. Night coming on, the *Merrimac* anchored off Sewall's Point. That was a dark night for us, as with one exception nothing looked hopeful. We were cut off from help landward, the *Congress* was burned, the *Cumberland* sunk, the *Minnesota* was aground and the *Roanoke* helpless with a broken shaft, while nothing seemed to check the ram at all. About midnight the *Congress* blew up. Among the dark rumors that night came a grain of hope in the report that an iron cased battery, the *Ericsson* which had been expected had arrived and would engage the *Merrimac* in the morning. Still it was but a grain.

"Light on that Sabbath morning showed the new helper lying behind the *Minnesota* but looking rather insignificant. About eight o'clock the *Merrimac* came saucily out accompanied by the *Jamestown* and *Yorktown*, wooden steamers and evidently expecting to have it all her own way as on the previous afternoon. As she approached the *Minnesota* the new comer came out from behind, which caused her to hesitate. She soon came on again when the *Ericsson* engaged her for several hours. At one o'clock the *Merrimac* hauled away for Norfolk with her guns all disabled while the *Ericsson* was not damaged at all. You can imagine there was great relief on the part of those who had stood watching and feeling that their own welfare depended on the outcome of that fight."

The night preceding this naval battle one section of the battery under Lieutenant Trull accompanied by a company of 1st Delaware was on picket duty at White Gate, guarding the cross roads as an attack by land was

looked for. The men stood at their guns all night, but morning dawned without the appearance of the enemy. At the same time the left section was stationed at Hampton Bridge under Lieutenant Hall. The morning of the same day the battery was ordered to Hampton Creek, where it remained for four hours firing several shots at the *Merrimac*, which was, however, too far away to be reached.

While in camp at Fort Monroe there was a grand review of all the troops by General Wool and also during their stay General McClellan's army of 125,000 marched by on their way to Yorktown. Speaking of the stay at Fort Monroe, Captain Russell writes: "This was one of the most trying times for the battery. We were all anxious to get to the front somewhere and while encamped here, along came the Army of the Potomac on the way to Yorktown. Day after day a continuous stream of men and batteries passed us calling to us 'Come on, get into the swim with us.'"

While here the battery had an opportunity to compete with one of the regulars in target practise. "Several Confederate steamers, the *Merrimac* among them, came out of Norfolk and lay in line off Sewall's Point. The battery was ordered to Hampton Creek with a battery of the regular army on the left. About 4 P. M. the *Merrimac* moved a little nearer and fired at the Union steamer *Naugatuck*, but burst a gun and fell back disabled. The regular battery fired a few shot at her but fell short two miles. The right section of our battery fired at an elevation of 30° by sinking the trail in the ground, the first shot bursting just on the other side of the *Merrimac*—a distance of four and one-half miles. We received much praise for our gunnery." *Diary, W. G. Hidden.*

"The next day we trained a gun on Sewall's Point and fired a shell. It went so close to the far-away beach that Captain Nims said 'Give her a little more elevation.' We dug the hole a little deeper, put her muzzle a little higher and the captain's next shell landed plumb on the point. That was five miles away."

To quote again from Captain Russell: "Our stay in the vicinity of Fort Monroe was about seven weeks. During that time we had seen much and done little so that when the old ship *DeWitt Clinton* reported as ready to bear us to the Southland for more active service we were all glad. But the loading of all our horses on the ship and placing them in stalls below deck

was no small job. Then came the guns and carriages, ammunition, forges, etc. But at last all was ready and as we sailed past the capes and the old ship headed southward we felt that at last we were off for the place awaiting us where we could do something for the integrity of our country and its flag. Our voyage was a pleasant one, no sickness of a serious character, the men cheerful and spending much time in making souvenirs of the voyage out of anything at hand. One thing did occur which made a lasting impression on the minds of those who witnessed it. Our ship was to report at Ship Island for further orders. After we had rounded Cape Florida one night, with our good ship under full sail and a free wind, the cry came from the lookout, 'Rocks ahead.' All of us who were on deck and those who could quickly reach it saw on each side of the bow of the ship and not far distant towers of rocks. No time was left to turn the ship to right or left, and so the man at the wheel could do nothing but let her go straight ahead. We braced ourselves for the expected shock, that would send us all to a watery grave. Seconds seemed hours. As we passed the rocks it seemed that one could throw a stone and hit them on either side. No shock came. Our ship went through into open water, she was rounded up into the wind, sails clewed up and anchor let go and we all breathed again. When morning came we found that our navigator had made a great mistake in his calculations and we had been piloted in safety through Dead Men's Keys. By whom? By God, in whose service we were. With grateful hearts we sailed away and reached Ship Island without further incident."

Ship Island was reached on the 14th after a passage of twenty-two days. A letter from Thomas N. Palmer written the following day:

"We have had a very pleasant voyage, no serious storm since we left Fort Monroe—a good steady old ship. The boys are all in good spirits and ready for anything. This war is fast drawing to a close and we shall soon be traveling north." Of the 134 horses belonging to the battery only four died on the trip, a rather unusual record at that time. As the government valued each horse reaching Ship Island at \$700 this was regarded as a decidedly favorable passage from a financial point of view.

At Ship Island news was received of the taking of New Orleans two weeks before and the battery proceeded at once up the Mississippi arriving at New Orleans on the morning of May 24 and camping at the Pelican Cotton Press. It was now assigned to General Williams' Brigade and in less than a week

ordered on board the steamers *Burton* and *Diana* for Baton Rouge where it arrived on June 1. "Here we found our old Eastern Shore comrades, the 4th Wisconsin and 6th Michigan regiments, who greeted us with hearty cheers and still more to the point furnished us with hot coffee." During this time the men were sent on scouting expeditions capturing some prisoners, seizing everything of value and burning some of the plantations which served as Confederate strongholds. On one of these expeditions the left section together with the 30th Massachusetts and two companies of the 4th Wisconsin captured 40,000 lbs. of sugar, molasses, cattle, sheep, mules, and wagons, and took prisoners one lieutenant and four privates.

The battery now prepared to join in the expedition against Vicksburg and on the 22d of June landed at Ellis Cliff in order to dislodge a hostile force that had fired the day before on the Union transports passing up the river. After a seven miles' march through the woods the enemy's camp was reached where fires were burning and beans boiling but the occupants had left in a hurry. The captain of the band was however captured in his carriage. Two days later a similar movement was made at Grand Gulf where the Confederates were driven from their position, five prisoners taken and the town and railroad destroyed. Under the date June 24, "3 A. M. Steamers with infantry and battery on board sailed up a bayou to get in the rear of Grand Gulf. 10 A. M. Landed at Berry's Plantation. Formed line of march, 4th Wisconsin and right half of battery in advance. Marched two miles and found a small force of the enemy in the woods who fired on our infantry. Colonel Paine ordered the right piece to the front. He did not have to wait long for my horses were ready for a jump. We soon reached the woods, fired a few shots at the enemy who saved themselves by getting on board a train and steaming away. Fired at train and struck the rear car completely shattering it. Marched five miles, found enemy's camp on fire vacated an hour previous. Then into Grand Gulf where we burned every building and destroyed the railroad track." *J. S. Knowlton*.

Two days later the expedition arrived at Point de Soto, three miles below Vicksburg, where the battery was first under fire and had its first lesson in real fighting. The occasion for this was incidental to the passage of Farragut's fleet up the river. Farragut had received most urgent Letters from the Navy Department urging upon him the clearing of the Mississippi, Vicksburg being then the only point in the possession of the Confederates.

Although he felt that it was impossible to take the city without a large land force, he prepared at once to make the attempt. Sending on in advance a flotilla of mortar boats under Commander D. D. Porter he followed with his fleet of three ships and seven gunboats accompanied by ten transports carrying General Williams' Brigade of four regiments and two batteries—the 2d and the 6th Massachusetts.

To quote from J. S. Knowlton's diary: "Our mortar boats commenced bombarding the city of Vicksburg at 4 P. M. We were ordered around the backside of the woods so as to get unperceived to the nearest point to Vicksburg. We marched over five miles and came to a halt on the railroad about three quarters of a mile from the point where we were to go into action. Here we dismounted and slept by our horses until the mortar boats began firing which was a signal for us to start. The firing soon became very severe, which indicated that the fleet had started. We pushed down the railroad, shot and shell falling thick and fast all around us, cutting off trees and plowing the soil at an enormous rate. We soon reached the shore and concentrated our whole fire upon three batteries of the enemy's right wing. Their batteries could be seen blazing from all points of the city. We made some good shots, putting our shell plumb within the enemy's works. They kept up a continual firing on our fleets sending their shots with great rapidity. At 5 P. M., the fleet having passed, we were ordered back to camp, having been engaged an hour and a half. Not a man in our company was injured in the whole engagement and only one horse was hit."

Another member of the battery writes: "Probably few grander sights were to be had during the war than we saw that morning as Farragut in the *Hartford*, just going enough to prevent the current getting the better of him, led his fleet of wooden vessels through that deluge of shot and shell." *S. P. Skilton*.

At an inspection the next afternoon, Captain Nims said that Commodore Farragut expressed much pleasure at the performance of the battery and the aid it had rendered and stated that it was the hottest fire he was ever under. The only part taken by the land forces in this expedition was by the two Massachusetts batteries.

A few days later the fleet passed back down the river under a heavy fire from Vicksburg and remained for some time in the vicinity of the city.

Before Vicksburg the river made one of those gigantic bends for which it is famous.^[2] For three miles it flowed directly toward the city and then bending suddenly flowed in an exactly opposite direction. Between these lines lay a peninsula scarcely a mile wide. When following the course of the stream, a vessel going up or down the river was under fire of the batteries for a distance of six miles. It was thought that if a canal be dug across this peninsula the current of the river might wear a channel by which boats could pass leaving them exposed for only one mile. Accordingly General Williams was commissioned to gather a force of negroes from the surrounding plantations to carry out this enterprise. Some 1500 were brought in and set to work, but the plan did not succeed. The position was not well chosen and before the work was completed the river rose suddenly and destroyed all that had been accomplished.

It was now evident that while it was possible to send a fleet up the river if necessary, Vicksburg could not be taken without a land force of 12,000 to 15,000 men. Accordingly, on July 24, Farragut's fleet, together with the transports bearing General Williams' Brigade, started down the river leaving Vicksburg entirely free. General Williams and his troops debarked at Baton Rouge for the purpose of permanently occupying it.

Of this entire movement Irwin says: "No casualties occurred but the troops returned July 26 to Baton Rouge after having for more than three months undergone hardships such as have seldom fallen to the lot of soldiers in a campaign whose existence is scarcely known and whose name is well nigh forgotten.

During the stay near Vicksburg many of the men contracted fever and on July 19 occurred the first death among the members of the battery—that of Theodore H. Price of Boston. Others followed in quick succession until by August 8, six of the battery had fallen victims to the soldier's worst foe, disease. These were: Theodore H. Price, died July 19; J. S. Haven, died July 31; Alvin Lovejoy, died August 2; Cyrus Davidson, died August 5; E. L. Leavitt, died August 5; M. F. Tate, died August 8.

Nor was this all, for at the grand review and inspection by General Williams on July 31, of the 140 members of the battery only 21 were present for duty, the remainder, including Captain Nims himself, being in the hospital. The same condition naturally prevailed among the other members of the

brigade, one regiment (the 7th Vermont) mustering but 48 men and other regiments averaging 150; so that not one half of the entire number was reported as ready for service.

When this state of affairs was made known to Major Van Dorn of the Confederate Army, he organized an expedition to capture the post. It was composed of about 5000 men under Gen. J. C. Breckenridge who expected to be aided in his endeavor by the ram *Arkansas*. With his entire force moving along the two roads that enter Baton Rouge from the southwest he made a vigorous attack in the early morning of August 5. Williams was expecting the attack (we read in the diary of one of the men that the horses had been standing in harness three days and three nights), and had arranged his forces to meet it. His army, depleted as it was by sickness, numbered only 2500 effective men. He posted the 4th Wisconsin on Bayou Gros on the extreme left, with a portion of Manning's Battery in the arsenal grounds on its left. On the right of that regiment was the 9th Connecticut with four of Manning's guns in the cemetery. To the left of Greenwell Springs Road was the 14th Maine and next came the 21st Indiana with four guns of Everett's Battery. The 6th Michigan was posted across the country road with two guns. In the rear of the last two was the 7th Vermont, and at the extreme right was the 30th Massachusetts supporting Nims' Battery.^[3]

Owing to the illness of Captain Nims, First Lieutenant Trull was in command, while to take the place of the men in the hospital a detail of thirty men had been secured from the 9th Connecticut so that when the battle opened the six guns were manned.

The conflict lasted from four to nine o'clock, a period of five hours, and throughout the entire battle Nims' Battery won the highest commendation for efficient service. Perhaps nothing could give a better account of what it accomplished than the Official Report of Colonel Dudley:^[4] "I immediately ordered Nims' Battery under the command of the brave and efficient First Lieutenant Trull, to the left and considerably to the front so as to clear the thick woods in its front. This battery went into action within 250 yards of a Kentucky regiment sheltered by a fence and a cornfield, where it remained doing excellent service until ordered to change position. Officers and men could not have behaved better. More coolness could not have been expected from veterans than the officers and men of this battery displayed. They changed position four times under my own observation and on each

occasion the gallant commander displayed his competency for the prominent part he acted in this severest part of the field.... At one time the undaunted Trull with his battery was hotly engaged on the right with a full battery of the enemy which had approached within 150 yards (supposed to have been the celebrated Simmes' Battery), but the 6th Michigan moved up to the support of Nims' Battery in elegant order. Its assistance came most fortunately for it was clear the enemy intended to outflank us at this point.... At this juncture of the conflict I ordered Lieutenant Trull to fire his three left pieces across the fronts of the Indiana 21st, Massachusetts 30th, and 7th Vermont. This was the turning point of the right wing. The galling fire of canister effectually silenced the enemy's fire and they retreated to the rear."

At one time the guns became so hot that it was impossible to use them and it became necessary to wait. While water was being brought to cool them a fierce attack was made by the enemy, but proved unsuccessful.

"At another time the enemy advanced bearing the Stars and Stripes until they were within 25 yards of the battery who supposed them to be their own men, but soon their artillery and infantry opened a tremendous fire, too high, however, to do much damage. In an instant the guns were discharged and the enemy mowed down like grass, the first fire killing over 100. Great cheers and praises for Nims' boys could be heard all over the battlefield."
Diary of J. S. Knowlton.

A correspondent of the *Boston Journal* gives the following description of the battle.

"Two highways run out of Baton Rouge—one above and one below,—on each side of the town; about a mile and a half a road cuts these two roads at right angles, while extending from road to road is a large cemetery, facing towards the city and looking directly into the camps of the Indiana, Massachusetts, and Connecticut regiments. The front of this cemetery is fenced with paling, while the cemetery is thickly strewn with large tombs and overgrown with high rank weeds. This was the position of the rebel center. Our center was composed of the Indiana 21st, the Massachusetts and Connecticut, drawn up on the opposite side of the roads, and not more than forty-five rods distant. The rebel right approached through corn-fields and over a rolling country, attacked with great impetuosity the 14th Maine's camp and drove them out, burning and pillaging the camp in a few minutes.

The 14th Maine rallied, and, supported by the Massachusetts and Nims' Battery, returned to the attack and drove the enemy back with great slaughter.

"The fiercest part of the conflict, at this tide of the battle, occurred before and within a house which the rebels obstinately determined to get possession of. The most conspicuous of the rebels at this place was a huge negro, armed and equipped with musket, knapsack and uniform; he led the rebels, and met his death at the hands of one of our men. Pressed back by our left, and our ground regained, the battle raged in front with desperate fierceness. So silently did the rebels approach, and so well were they concealed, that they were in the cemetery and drawn up in battle array without our knowing it. With a yell they rushed up to the fence, dashed through it and across the road, bearing everything before them. At one time the opposing forces were hand to hand, and our handful of men were driven out of their camps and back into the town; but, rallied on every hand by their officers, and the cool daring of General Williams, assisted by the gunboats that began to fire shell on each bank with perfect accuracy and deadly effect, our troops bravely rushed to the front and drove the entire rebel center, back across the road, into and beyond the cemetery, from which they were not again able to emerge."

From a description of the battle given by a soldier who was in the fight, we extract the following:

"The 14th Maine, 21st Indiana and 6th Wisconsin were the first regiments engaged. They held in check about eight thousand Confederates for about one hour, when they were forced back a quarter of a mile, the Confederates occupying their camps, which they destroyed. On account of a heavy fog, the 7th Vermont, 9th Connecticut and 4th Wisconsin were not able to ascertain the exact position of the enemy, and were of but very little service until the new line was formed. Captain Nims^[5], Captain Everett, and the battery on the right, and two pieces of the 4th Massachusetts on the extreme left, opened a murderous fire from their batteries, which was returned with spirit by the Confederates. The battle raged without a moment's intermission, and with great severity for two hours. During this time nothing but a continual roar of artillery, the rattle of musketry, the shouts of the combatants and the groans of the wounded and dying was to be heard.

Captain Nims' Battery was compelled to fall back, his guns being so hot it was impossible to use them.

"He took his position on the left of the 21st Indiana, and ordered water to be brought to cool his guns. While thus engaged, three regiments of the Confederates charged the 21st Indiana, and one regiment charged the battery. General Williams, perceiving the perilous position of the regiment, and knowing the consequences of having the center broken, took his position at the head of the regiment, and gave the command to prepare to charge. The regiment fired three volleys (the battalion having breech-loading rifles), and allowed the Confederates to approach within a few rods. General Williams then gave the command: 'Forward! double quick!' and with a deafening cheer they rushed to the charge. The shock of two such masses advancing shook the entire field.

"The struggle was fierce and the slaughter heavy. Four times the rebels made desperate efforts to come from among the tombs and cross the road, but were driven back each time, and finally they retreated in full panic.

"On our right, in the meantime, the rebels, under General Clarke, made a desperate effort to flank us and get in our rear. It was here that the admirable generalship of Williams displayed itself. Anticipating this very movement, he had placed Manning's battery of six pieces, supported by the Wisconsin and Vermont regiments, while the Michigan Regiment was strongly posted at the crossing of the roads and commanding the entire approach of the enemy's left. Here the battle raged fiercely; and after the rebels' flank movement was repulsed and driven back, not to return, here it was that the gallant general fell, at the head of the Indiana and Michigan regiments, but not before victory had lighted up that fine manly face with its glow of triumph.

"This was the signal for a general onset on both sides. Captain Nims lost two of his guns, but charged with his sabres and revolvers and retook them. The 21st Regiment repulsed three times their own numbers, and drove them back in confusion. I was at this time detached with the first platoon of our company (4th Regiment Wisconsin), to skirmish on the extreme left of the line, to prevent a surprise on our flank. I took a position one mile outside the old picket lines, in true Yankee style, behind stumps and trees. The rebels did not think it safe to honor us with a shot. We were fired at,

however, by some of our pickets, who were driven in from the front, they mistaking us for rebels. They also reported us to the gunboat *Essex* as rebels, and she commenced shelling our lines. The rebels were forced back a mile and a half."^[6]

In General Butler's General Orders we find the following eulogy of General Williams: "A gallant general, an accomplished officer, a pure patriot and victorious hero and a devoted Christian. In choosing his position for the battle he gave up the vantage of the cover of the houses of the city, forming his lines in the open field lest the women and children of his enemies suffer in the fight."

In another report^[7] honorable mention is made of Sergeant Cheever, Privates Tyler and Clogston for the skill and bravery with which they worked one of the guns when almost in the hands of the enemy, they having left sick beds in order to do their duty.

The courage and steadfastness of the Union troops is all the more remarkable when we remember that as Weitzel says: "None of our men had been in battle and few had been under fire. The entire Union loss in this battle was reported as 77 killed and 240 wounded. Of this number the battery lost four wounded, one detailed from the 9th Connecticut receiving a mortal wound, and one man was captured."

When the conflict was over, General Butler said: "Nims' Battery saved the day," and Breckenridge himself was heard to remark: "If it had not been for that Light Artillery in front, I would have taken the place, I charged it three times, but was knocked back every time." *Boston Journal*.

Breckenridge had made a speech to his men early that morning promising them to have his band playing in the state house by nine o'clock.

It was expected that another attempt might be made to regain Baton Rouge, as a few days after the battle a flag of truce came in from the Confederates ordering General Paine, the Union leader, to withdraw his forces. Preparations were immediately made for the defense of the city; all public buildings were burned and trees cut down that might interfere with the range of the guns. The men of the battery lay by their guns all night, but the next morning it was found that the enemy had retreated, burning their bridges behind them. A few days later Breckenridge marched his troops to

Port Hudson, thirty miles above and began there the construction of heavy batteries.

Soon after the Union forces left Baton Rouge, and on August 21 the entire command left for New Orleans. The battery first camped at Carrollton but changed the next day to Matera Ridge where it joined the brigade under Colonel Dudley consisting of 30th Massachusetts, 4th Wisconsin, 21st Indiana, 6th Michigan, 7th Vermont, 14th Maine, 9th Connecticut, 2d, 4th and 6th Massachusetts batteries and 21st Indiana Battery.

The location did not prove healthful, however, and a week later camp was once more changed to Tivoli Circle, New Orleans.

On August 22 Privates Lombard and Barnes died at St. James Hospital. Indeed, sickness followed the battery and in every record we read: "Have been in hospital two weeks." "Came to hospital to-day." "Two more men on the sick list." In the month of October eleven members, some of whom had been in the hospital for weeks were discharged and came home. During the stay in New Orleans, however, the men began to regain their health.

The time from August to December was spent largely in drilling, a parade and some form of drill constituting a part of each day's duty. Inspection of men and quarters was common and some will doubtless remember an acting inspector general who ordered Corporal ——— to get his hair cut, much to the amusement of the boys as said corporal wore a wig. On Thanksgiving Day some of the men fought off the pangs of homesickness by preparing a grand dinner. "The best I've eaten since I left home," while others in the evening gave a grand ball where the music consisted of three violins, a cornet and a banjo.

About this time Lieutenant Trull left to take command of the 4th Massachusetts Battery, Second Lieutenant Marland was advanced to First, and First Sergeant Edw. K. Russell of Chelsea was commissioned to fill the vacant second lieutenancy. On September 8 the death of J. K. Harvey was reported.

General Banks having succeeded General Butler on December 16 in command of the Department of the Gulf, the troops in Louisiana were organized as the 19th Army Corps composed of four divisions and Nims' Battery was assigned to the fourth division commanded by Gen. Cuvier

Grover and ordered to report at Baton Rouge. Here it remained until March 13, spending much time in drill—drilling on pieces, as cavalry and with flying movements, and occasionally doing picket duty.

"At this time, while some of our men were acting as pickets several miles outside the town, an incident occurred that, had it taken place in the North would have been called 'a Yankee trick,' but as it is we disclaim it, and let our Southern brother have all the honor (?). Some of our men were acting as mounted pickets, and as they sat upon their horses looking up the road, and listening for the footfall of horse or man, a sharp sound of a bell came from the thick timber land on their side and quickly their ears were open and with eager eyes they sought to fathom the cause of the sounds, when tinkle-tinkle-tinkle came the sounds again and as it fell upon the ears of our men it took them back to their boyhood days when sent for the cows. They listened for the welcome sound of tinkle-tinkle-tinkle. Oh it is only an old cow in the brush: but they soon learned from the bullets' whiz that they had better be moving, and they did." *Captain Russell.*

On another occasion Sergeant Lincoln and Privates Carter and Wilkins were on picket duty on the Port Hudson Road. Lincoln and Carter were fired on, their horses killed and Carter badly wounded. He dragged himself through the woods to a house where he was put into a wagon and brought to camp. Lincoln was stripped of his equipments and let go.

The records during this period show that a soldier's life meant good hard work—even if fighting was not going on. Battery drill, gun drill, marching drill—all these filled the days and brought the battery to the highest degree of efficiency. One drill consisted of flying movements, dismounting and mounting guns and carriages, slinging guns under the limber, etc., and was nicknamed by the boys "break-neck drill." Accidents were rare, however. Captain Nims invented new signals for the use of his men so that the enemy might not know what orders were being given. Washington's Birthday was observed by a grand artillery review by Captain Closson, chief of artillery, and by raising a large flag across the camp ground.

The most important duty entrusted to General Banks at this time was an advance up the Mississippi against Port Hudson, coöperating with Grant in his movement against Vicksburg. Bank's force, however, was not strong

enough to carry the works and he therefore turned his attention to reducing the fortification by other means.

Port Hudson drew its supplies mainly from Western Louisiana and Texas by way of the Red River.^[8] If this river could be reached and held, these supplies could be cut off and communication could be opened with Grant near Vicksburg. The Confederates held Alexandria as their chief point of defense but they extended their outposts as far as the railroad from New Orleans to Brashear City. Another earthwork known as Fort Bisland was on the Bayou Teche and reached to the swamps south of the bayou. All this territory for 50 miles west of the Mississippi is an impassable network of swamps and lakes, but there is a road from Brashear City to Alexandria and along this road lay the line of advance to Red River. Early in January expeditions had been organized for the purpose of moving up Red River but it had been found impossible to make a way through the swamps and bayous, and it was thought necessary to abandon the project. About this time information was received that the Confederates had captured on Red River the ram *Queen of the West*, and the gunboat *De Soto* which had run past the batteries at Vicksburg and descended the river.

Farragut determined at once to patrol the river above Port Hudson with his vessels and requested Banks to make a demonstration against the fortification while he ran past the batteries.

Banks having assembled his forces at Baton Rouge, on March 13 the whole force broke camp and marched toward Port Hudson, the right and center sections with the divisions of Generals Grover and Emery on the Port Hudson Road and the left with General Auger's division on the Clinton Road. The next day Farragut with his fleet started up the river. The land forces did not get near enough to the works to use their artillery very effectively, though one section of the 2d Massachusetts was sent within shelling distance of the Confederate works and fired 50 round of shell into them.

We quote the following from an article in the *Boston Journal* written by C. B. Maxwell.

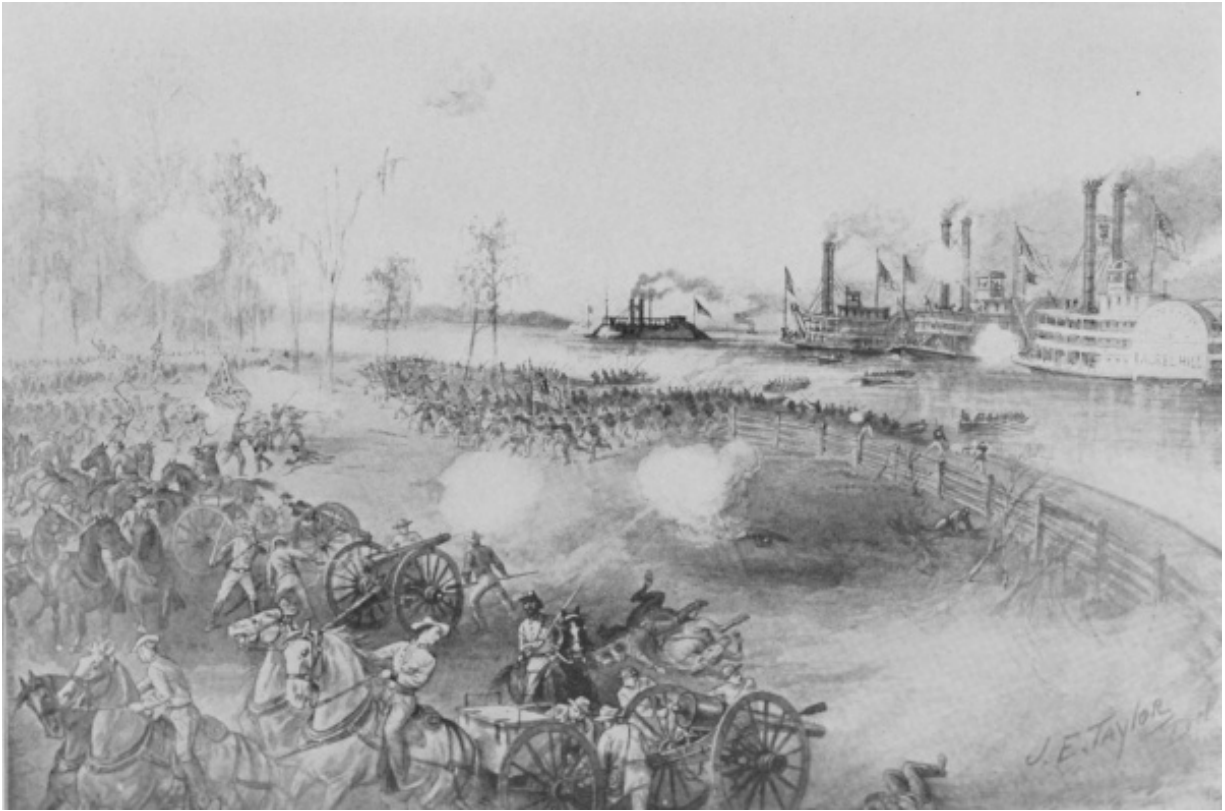
"The army having halted and camped for the night the sergeants of the first and third detachments came to our quarters and quietly told the drivers and cannoneers not to 'turn in.' 'You will be wanted before midnight,' they said.

'We are going out on the road and we may have some fun.' So about 10 P. M. we were told in whispers to 'hitch up.' When all was ready, the section moved out giving the rest of the battery the 'grand sneak' as it were. Lieutenant Marland was in command I think. Well, we arrived at a certain point on the road and having passed through the woods were ordered to halt, unlimber and go into battery. Said the lieutenant to the guide: 'Where is Port Hudson?' 'Right ober dar,' was the reply. 'Which way is that?' 'Right ober dat away.' 'How far is it?' 'Oh right smart aways. I done walk plumb down to de ribber from break o'day to sun-up.'

"The gunners elevated the pieces and each fired a few shots, after which all was still and dark as before. The only loud words spoken were the lieutenant's when he shouted: 'How do you like that.' Echo answered, 'Where are we at?' Then we limbered up, thinking of our tents and stole away back to camp and turned in. In the morning orders to hitch up were received and the column was soon on the march to Baton Rouge. So we claim that Nims' Battery fired the first shot at Port Hudson."

Meanwhile Farragut advanced with his fleet amid a perfect deluge of shot and shell. Two of his ships, the *Hartford* and the *Albatross* were able to pass the batteries, but all the others were sunk or disabled. Although so many met with disaster, Farragut's purpose was fully accomplished, for the Red River route was hence forward completely blockaded—a most important object at that time.

As the object of Banks' land expedition had been solely for the purpose of making a demonstration while the fleet was en route he immediately returned with his forces to Baton Rouge. He himself went on to New Orleans, leaving orders that another attempt be made to resume the movement to Brashear City.



Landing of Federal Troops from Transport Laurel Hill.

Accordingly, on the 27th of March the command was taken by transport *Laurel Hill* to Donaldsonville, whence it marched over-land to Brashear City, the trip beginning the 31st and ending the 9th of April. On this march the battery formed a part of the 2d Brigade, Colonel Kimball, in General Grover's division. Here it united with the rest of the Army of the Gulf for operations against the enemy who were threatening New Orleans from the rear, the whole numbering about 17,000 men.

On the morning of the 11th of April the battery with General Grover's division started from Brashear City and proceeded up the Atchafalaya River.^[9] The intention of this expedition was to get in the rear of the enemy and either attack them there or cut off their retreat. The grounding of one of the transports at the entrance of Grand Lake delayed the troops for twenty-four hours but on the 13th a landing was made opposite Madame Porter's plantation thirty miles from Brashear City. While effecting a landing about 250 Confederates with two pieces of artillery opened fire and a sharp skirmish ensued in which the Union men took quite a number of prisoners.

The next day, shortly after daylight, the division again advanced and early in the morning met a strong force of the enemy at Irish Bend, a sharp bend in the Teche. Here a battle took place and after two hours' fighting the enemy was obliged to retreat leaving many dead on the field and about 100 prisoners. For the next few days an advance was made, constant skirmishing going on all the while until on April 17 we find the battery at New Iberia. Here the left section under Lieutenant Snow, together with three regiments marched twelve miles farther to Avery's Island, destroyed the famous salt works there and captured a large number of horses. The destruction of these salt works was a very important measure, as from them the Confederates had been able to obtain thousands of pounds of salt, thus making them independent of the United States or England.

The next morning the march was renewed, Generals Emery and Weitzel on the Bayou Road, General Grover on the other. At Vermillion Bayou the enemy, who was only a short distance in advance, massed in a strong position on the opposite bank, fired on the Union troops from the woods, opening with artillery. Nims' Battery and Battery L of the regulars joined in the artillery duel, forcing the enemy to retire, but not until they had burned the bridge over the bayou. The next day the bridge was rebuilt and the advance continued until on April 20 Opelousas was reached.

While here orders were read from General Banks giving the troops much credit for capturing over 2000 prisoners, 10 guns, assisting in the destruction of two gunboats and two transports, the salt works and one fort and also in seizing a large quantity of arms and equipments, sugar, cotton, molasses, mules, horses, etc.

At this time, too, one section of the battery under Lieutenant Snow was detached from the main body and for about a month served under Colonel Chickering in connection with the 5th Massachusetts, 41st Massachusetts, 4th Maine, and a New York regiment. The work done is summarized as follows: "There was collected and sent to New Orleans via Brashear upward of 6000 bales of cotton, large quantities of sugar, molasses, and other products and at least 10,000 contrabands, men, women, and children to work in the government plantations in LaFourche Co." Irwin says: "The column covered in the march the long train that stretched out for eight miles over the prairies with a motley band of negroes, horses, and beeves for a cumbrous accompaniment. With the possible exception of the horde that set

out to follow Sherman's march to the sea, this was the most curious column ever put in motion since that which defiled after Noah into the ark."^[10]

On April 22 the right and left sections with the First Brigade, General Dwight, pushed forward through Washington to the Tableau River where they rebuilt a bridge which had been burned. During the day there was a slight skirmish with the cavalry. In C. B. Maxwell's diary we read: "Our battery with General Dwight's Brigade. Joe Knowlton and I crossed river to plantation owned by a widow and obtained some milk and two dozen eggs. Just then the enemy's force fired on our cavalry pickets, killing one and wounding several. Joe and I started on double quick each with one dozen eggs in a handkerchief. Reached camp without losing or breaking one!"

On the 4th of May the whole army started for Alexandria. "Captain Dwight of General Banks' staff rode past the brigade with orders and when just in front of the battery he was fired on from across the bayou and killed. A company of cavalry was sent out in pursuit and succeeded in capturing the man who committed the deed. Three days later he was brought before the brigade and shot."

May 12 Alexandria was reached and after a few days' rest a start was made for Port Hudson by way of Simsport and Bayou Sara.

Port Hudson was situated on a high bluff on the east side of the Mississippi at a sharp bend. Its fortifications were arranged for defense, the parapets averaging a thickness of 20 feet and the depth of the ditch below the parapet being not less than 15 feet. Below the landing known as Hickey's were the first batteries, on a bluff about 40 feet above high-water mark. Three series of batteries extended along the river for a continuous line of three miles. Above the creek was an impassable marsh. From the lower battery ran a line of land fortifications semi-circular in form and about ten miles in extent.^[11]

The Confederate forces numbered probably about 7000, the Union forces something over 30,000. General Banks' troops were commanded by Generals Weitzel, Auger, Grover, and T. W. Sherman, while the Confederate garrison was under Gen. Frank T. Gardner.

The following extracts will show how the battery was engaged for the next few weeks.

May 24. Arrived at Bayou Sara at 3 A. M. Marched 13 miles toward Port Hudson. General Grover's division took first line of rifle pits. Army then formed around Port Hudson with Generals Weitzel and Paine on right, General Grover and Colonel Dudley in center and Generals Auger and T. W. Sherman on the left. The artillery brigade under command of General Arnold.

May 25. Battery ordered to relieve Battery L at the front.

May 26. At noon both sections fell back a half mile and went into camp to rest the horses, they having been in harness four days and four nights.

Banks was informed that the Confederates were withdrawing from the post and accordingly orders were given for a general assault. On the morning of May 27 the artillery opened upon the garrison, and continued firing all day. The infantry and navy joined in the attack. One section of the battery advanced to within 700 yards of the enemy's works and silenced two of their guns, but were in turn silenced by the enemy. The whole assault was a disastrous failure, the Union loss being 293 killed and 1549 wounded. The next morning under a flag of truce there was a cessation of hostilities until afternoon in order to take away the dead and wounded. "During this intermission of hostilities the better part of our natures asserted itself, the Blue and the Grey mingled, and over the works they exchanged coffee, tobacco, bread and even souvenirs, and asked information of each other: as the time drew near for the opening of hostilities we parted as friends, cautioning each other to lie low and so escape each other's bullets. As I saw all this I felt that God must have a long hard lesson for us to learn that it was needful that men should take each other's lives in cold blood." *Capt. E. K. Russell.*

Day after day the cannon shelled the works disabling many of the enemy's guns and wearing down the men with fatigue and watching.

Nims' Battery was on the field almost constantly. In the diary from which we have already quoted we read: "Remained in position all day and all night—lead from sharp shooters falling thick around us, relieved at 7 P. M. the next day," and again: "Our section at the front all day and night,—kept one battery silent," and still again, "Stretchers are constantly at work bringing in our wounded." "Keep up fire day and night." "First section under Lieutenant Hall start out with brigade of cavalry under General

Grierson,—engage in battle near Clinton. Cavalry out of ammunition—obliged to retreat to avoid capture, reached camp after march of 50 miles." At this time the center section which had been at Barry's Landing for some weeks arrived at Port Hudson bringing with them four recruits from Boston.

The position of the little Union army, which did not number now more than 12,000 men, was becoming critical, hemmed in as it was by intensely hostile inhabitants, and the commander felt the need of a speedy reduction of the post. Accordingly on June 13 a general bombardment of two hours took place, and at 12.30 General Banks sent in a flag of truce calling for the surrender of the fort. General Gardner's reply was: "Under the present circumstances, I am unable to surrender." When this answer was received, arrangements were made for a grand storming on June 14. "The program of storming was sent by General Paine to all the officers in his command, that each might know the duty he had to perform, and was as follows: The 8th New Hampshire and 4th Wisconsin regiments were to act as skirmishers in the advance, followed three yards in the rear by the 4th Massachusetts and 110th New York with grenades which were to be thrown over, the instant the skirmishers gained the top of the works. Next in line was the 31st Massachusetts, each man carrying two bags of cotton to be thrown into the ditch, in order to make a road for the artillery. Then the 3d, 2d, and 1st brigades followed by Nims' Battery. At 3 A. M. the line was formed and the march begun. When within 20 yards of the Fort and under a heavy cross fire the order was given, clear and distinct: 'Charge!' and after a long hard struggle the skirmishers gained the top of the works. Here they found bayonets and guns presented to their breasts, the enemy at the same time shouting: 'Surrender or die.' The brave soldiers looked around for their support but it had failed them, and forty brave boys had to surrender as prisoners. We remained all day under a heavy fire from the enemy and at 9 o'clock withdrew from the field having gained nothing." *Knowlton's diary*.

General Paine was wounded early in the attack, a ball shattering his leg. He was forced to remain on the field for twelve hours under a heavy fire, while hundreds of others were in like condition for twenty-four or thirty-six hours, until under a flag of truce they were brought forward by the enemy, who would not allow the Union troops to come near their fortifications. "It would not be just to allow this record to become history without mentioning the valor displayed by some of the colored troops engaged with us on that

occasion. After the assault had failed, and the ground in our front was strewn with our wounded comrades, these colored soldiers could be seen by twos crawling on their knees dragging after them a stretcher and on reaching a wounded soldier would roll him upon the stretcher, then, after a moment's rest, they would arise quickly and make a dash for a shelter from the shower of lead that was sure to fall around them." *E. K. Russell.*

On the 16th General Banks issued an order for a thousand stormers, offering medals to the soldiers and promotions to the officers, and preparations were making for a third assault when on July 7 came the news of the surrender of Vicksburg. This put an end to the hopes of the Confederacy, and two days later Port Hudson surrendered, 6408 becoming prisoners of war. In addition to the important post the spoils of victory included two steamers, 51 pieces of artillery, 5000 small arms and a large quantity of ammunition.

Most important of all, the fall of these two strongholds gave free navigation of the Mississippi, or in the words of Lincoln: "The Father of Waters goes unvexed to the sea."

Among other services rendered by Nims' Battery in this siege it is claimed that one of her guns had the honor of firing the last shot at Port Hudson and also receiving the last shot from that same fort. We have already told how it fired the first shot at this place.

We quote from the story as told by C. B. Maxwell.

"During the siege of Port Hudson and on the occasion of one of the many assaults on the fortifications by the Federal army, there was captured a young soldier, of the 165th New York Zouaves. He was a bright, active lad, and while captive had his eyes open to chances, especially to making his escape. Among the things he saw was a mill in the town near the river, wherein they ground all their corn, and as that was all they had to eat it occurred to him that it would be a misfortune to himself as well as to the enemy if by any accident that mill should be destroyed. So he paid closer attention than ever to getting through the lines to reach his regiment, where rations were better both in quality and quantity, and near the end of the siege he was successful. In relating his experience he said of the corn mill: 'If they hadn't had that, I should have been obliged to take my corn on the ear.'

"This having been reported to headquarters, General Banks sent for Captain Nims and said, to him:

"Send over a section of your battery to a point opposite and throw a few of those percussion shells into that mill. It may weaken their power of endurance. The soldier will go along to point out the mill. Of course, if you draw the fire of those heavy batteries, you will retire and report back to camp.'

"And so the first section, Lieutenant Hall commanding, made a night march to a boat landing some miles below, where a steamboat was in readiness 'to tote' us across. On the other side we marched up, being protected from view of enemy by a very high levee on that side of the river, to a point commanding a good view of the town opposite. Then all hands went to work with shovels, which we came provided with, cutting an embrasure and space to work a gun, thus making a good fort, as it were, in a short time. We then hauled the gun up the slope into position. The men not engaged in working the gun were lying on the grassy slope of the levee watching the effect of the shell on 'the large building with a nearly flat roof.' The zouave was reclining on his side with head and shoulders exposed above the levee, as were the rest.

"There had been two or three shots fired when Lieutenant Hall, looking through his field glass, remarked: 'Those were good line shots, but a little too high; just put them in on the ground floor.' Suddenly a puff of smoke curled up from the water batteries, and a 6-inch solid shot plowed a furrow across the top of the levee, and to our horror and amazement instantly killed our friend the 'Zou Zou.' We retired, quietly and quickly, after burying the body then and there making our way back by the same route by which we came, and took our place in line with the rest of the battery in time to march into Port Hudson, the surrender having been made that day. Negotiations to that end were going on the day before, while we were making the attack on the corn-mill, though of course unknown to us."



Second, Fourth and Sixth Massachusetts Batteries at Baton Rouge.

The 10th of July the battery was ordered on board the *Laurel Hill* for Baton Rouge, but on reaching the wharf found the steamer already overcrowded. Consequently orders were given to march that distance. Accordingly with nine other batteries and the infantry it began a tedious all night march, many of the men, who had been up for three nights, falling asleep on their horses. At Baton Rouge transports were taken for Donaldsonville where skirmishing was going on with a hostile force under Dick Taylor. Before the reinforcement arrived the enemy retreated, but as an attack was expected the right and left sections of the battery were immediately ordered on picket duty, where they remained for the next two days without, however, encountering the enemy.

A stay of two weeks at Donaldsonville was followed by a march to Carrollton and then to New Orleans in company with Battery L, the 159th New York and a large wagon train all under command of Colonel Molineaux. This march was exceedingly trying on account of the excessive heat which exhausted the men and killed two or three horses.

While at Donaldsonville four members of the company who had been taken prisoners at Brashear City, while in hospital there, arrived and were sent to New Orleans, being on parole.

The battery arrived at New Orleans on August 5, took up quarters in the Mississippi Cotton Press, where it remained from the 6th of August to the 17th of September.

First Lieutenant Hall having resigned, his juniors were promoted in turn, and First Sergeant Joseph K. Greenleaf of Boston was commissioned as junior second lieutenant. Early in October Second Lieut. Edw. K. Russell was promoted and transferred to the 6th Massachusetts Battery, creating a vacancy which was filled some time later by the commissioning of First Sergeant Lucian A. Hodgdon of Somerville. At the same time Gunner Swan was made sergeant of the 2d detachment, Corporal Ellis gunner of the 3d detachment and Private Taylor corporal of the 2d detachment.

During the stay in New Orleans the battery was commanded to mount as horse or flying artillery and to join the cavalry division of the 19th Army Corps. Associated with them were two other batteries, one from Missouri, and one from the regular army, and Captain Nims was appointed Chief of Artillery of the 19th Army Corps, Col. A. L. Lee, and was made a member of Colonel Lee's staff.

The first parade of these batteries as horse artillery (at which Nims' Battery held the post of honor), took place September 5, and was witnessed by Generals Banks, Arnold, Franklin and many other officers. The following letter, a copy of which was found among Colonel Nims' papers, is a proof of their high opinion of this new organization.

OFFICE, CHIEF OF ARTILLERY.

HD. QRS. DEPT. OF THE GULF,

NEW ORLEANS, September 7, 1863.

Capt. O. F. NIMS,

Chief of Artillery, 19th Army Corps.

SIR:—

It becomes my great pleasure to communicate to yourself and the batteries under your command on the 5th inst., the high commendation of the Commanding General of the Department of the Gulf and the Adjutant General of the United States Army. They were pleased to express the belief that *no* artillery in the service could be more thorough in their equipments and general appointments.

Please communicate the above to each battery commander.

Your ob'd't servant
Very respectfully,
RICHARD ARNOLD.
Brig. Gen. and Chief of Artillery.

On the 17th of September another movement began toward the interior of Louisiana. The object of this entire movement was to divert the enemy from Banks' expedition into Texas which he was about to undertake. Accordingly he ordered the command of which the battery was a part to advance under Gen. C. C. Washburne from Brashear City to Opelousas, to give the impression that a march to Alexandria or Shreveport was begun. The battery left New Orleans on September 18 and the next day reached Brashear City, which had been evacuated by the Confederates in July after securing about 1000 prisoners together with supplies valued at \$2,000,000. A week later an advance was made to Bisland and then on to Opelousas, which was reached October 24. All along the advance, skirmishing and fighting occurred almost every day, and in it all the battery did its part most creditably. At Indian Bend, October 2, the left and center divisions, which were in the advance, met the enemy and drove them back. Two days later at Vermillion Bayou the same sections forced the enemy once more to fall back. Again the right section at Vermillion Bayou contended with the enemy for a ford for over three hours, driving them completely from their position. Again we read in our diaries: "The right and center moved forward with the advance cavalry came in sight of the enemy's camp. They retired leaving for us a good dinner of beef steak, sweet potatoes, and corn cake all piping hot. Pieces of our shell picked up near camp fires about two miles away." Two days later,— "Just at dusk, the enemy advanced on our pickets. A section of the battery was sent for, hitched up with a will, crossed the plains on a gallop and in 18 minutes from the time the first order was given we had gained the distance and commenced firing. Time taken by Colonel Molineaux."

October 15. "The enemy came out on the open plain, drew themselves up in line of battle and commenced firing on our pickets. This battery was ordered to the front at double quick and at 7 A. M. we were at the extreme advance—we opened a heavy fire which caused them to break for the woods. At 9 A. M. Captain Simmes' Battery opened on us from a masked position—we dismounted one gun and exploded their ammunition chest

forcing them to retreat. A piece of one of our shells cut off the head of one, passed through another and killed his horse—deadly work."

October 21. "6 A. M. whole force moved forward, the battery with advance cavalry. At 7 A. M. met the enemy in line of battle. Right section with cavalry engaged left flank while remaining section engaged them in front. We succeeded in driving them back on the flank and then in front and they retreated in disorder. Our troops followed to Opelousas when right section with cavalry branched off to Barry's Landing and went into camp after a hard march over ditches, through corn field, etc. October 28. A running fight for 17 miles. Center section with Grover's division at Opelousas."

And so it goes day after day till Opelousas is reached, and on November 1 a retrograde movement is ordered. Here again we find the battery in the post of danger, acting often as rear guard, skirmishing with the enemy.

Under the date of November 2 we read: "7 A. M. enemy fired on our pickets. Section ordered on the double quick to the front about a half mile away. We opened fire and after a short skirmish drove them four miles and then fell back slowly across the plain to draw them into a fight. They followed and when within short range we opened on them with shell which broke up their line. We pursued them again till 4 P. M. when we gave up the chase and returned to camp. Generals Washburne and Burbridge were with us during the engagement and gave us much credit." This battle is known as that of Carrion Crow Bayou.

The next day, November 3, marks another occasion when the battery won especial honor for itself, and as we read in General Burbridge's report—"did more than its whole duty."^[12]

At Grand Coteau, the Confederate forces including cavalry and artillery—about 5500 in number, under General Greene—surprised the camp and nearly captured it. The right under General Burbridge on whom the weight of the attack fell was almost surrounded and ruin seemed inevitable. The section of the battery under Lieutenant Marland was attacked, the enemy being in so short range that the guns could not be brought into action, and while part were endeavoring to work the guns others were harnessing the horses. A desperate conflict ensued, the guns keeping up a heavy fire. Regiment after regiment of infantry was brought up as support but gave way until the battery was almost surrounded. It was at last obliged to fall

back, the cannoneers fighting their way with their revolvers; but bringing off their guns in triumph. Before they had retreated far they saw coming to their aid on the double quick General Cameron's Brigade of the 13th Corps. They immediately halted, got their guns in position and renewed the conflict, chasing the enemy back four miles, and securing thus a Union victory. When General Franklin was told of this experience he said, "If there is ever another opportunity of racing a section of Nims' Battery give it your two best regiments for support, for it is the finest battery in the United States." One historian in relating this incident says, "Nims' Battery saved the day."

The following is the official report of Lieutenant Marland as given in Official Records, Vol. 26, p. 371.

BAYOU BOURBEAU,
CARRION CROW BAYOU.

"In pursuance to your orders I have the honor to make the following report of the part taken in the action at this place on the 3rd of November by the section under my command.

"In obedience to orders received on the evening of the 2d of November I harnessed up at 4 A. M. on the 3rd, remaining so until 11 A. M. when I was ordered to unharness—the pickets firing all the while.

"At about 11.45 P. M. the firing became general. Hearing the cavalry buglers blow Boots and Saddles, I began to harness up on my own responsibility and was attacked in camp before I could get harnessed. The enemy being within 400 yards of me I opened on them with canister and percussion shell which checked their advance and drove them to the right. I limbered to the front and advanced to the fork of the road which is about 100 yards. Went into battery and fired a few shot until my support all had left me. Finding it too warm, I limbered to the rear and moved 300 yards. Finding the enemy in my rear and on the right, I fired to the right about 50 shot and was charged on three sides. A regiment came up on my left as support, fired one volley and left. The enemy then opened two pieces of artillery on me at about 300 yards killing one horse and disabling one caisson wheel. The cavalry still advancing and no infantry to be seen I limbered up and started for the woods. Here I ordered my cannoneers to draw their revolvers and had quite a brisk fight. Had another horse killed, and two men missing. Went through the woods the enemy coming out in rear and front of men. As the bridges were held by the enemy, it was necessary to charge through, which was accomplished, without loss. I came up to the 46th Indiana and formed on their right. Colonel Bringhurst told me he would support me and I went back through the woods with General Cameron's command, driving the enemy in disorder who left dead and wounded on the field. I then returned to camp with General Cameron's Brigade.

"I am sir, very respectfully,

"Your most ob't servant,

"Wm. MARLAND,
"1st Lieut. Com. Sec.

"Brig. Gen. RICHARD ARNOLD,
"Chief of Artillery. Dept. Gulf."

We also quote from Major General C. C. Washburne,

"The bringing off of the section of Nims' Battery, after the regiment sent to its support had surrendered, extorted the admiration of every beholder."^[13]

In this engagement Sergeant Burwell and Private Smith were taken prisoners, while three horses were killed, seven wounded and the gun carriages damaged somewhat.

The entire battery was brought together at Vermillion River and on November 2 it took a prominent part in the engagement at that point,—maintaining a brisk artillery duel with the enemy and after two hours hard fighting and firing 120 shell it succeeded in driving them from the field.

We quote from the diary of W. G. Hidden:

"Right and left sections with 1300 infantry and cavalry, all under General Lee, started at 5 A. M. on the Opelousas Road, met the enemy's pickets one mile out and drove them before us. At 10 A. M. we arrived at the edge of a plain and saw the enemy drawn up in line of battle about two miles distant. The right section was ordered into position and fired twenty shell, causing them to disclose their whole force of about 6000. General Lee then ordered a retreat. Arriving at a plain outside the town, we found a brigade of infantry with 4th Massachusetts Battery lying low in the bushes. We moved our guns into the bushes just high enough to conceal us from the enemy and waited. They soon formed a line of battle about 1000 yards in front. Right section opened fire and the first charge emptied fifteen saddles. Their cavalry then charged on our left. Left section engaged them while we engaged the front. Cavalry was forced to retreat. Their artillery having got into position, opened fire on us and did some fine shooting. Their shells burst all around us plowing the ground and killing some of our infantry, but our men escaped injury. After two hours fighting the enemy retreated and we returned to camp. This is called The Artillery Skirmish at Vermillionville."

On November 16 the entire force started for New Iberia, the battery acting as rear guard and burning the bridge across the river after all were over. One writes: "It was a splendid sight to see the army form,—each part separate, and then unite to form a line and move off over the prairie with bands playing." The next day New Iberia was reached and preparations were made for the winter. At the same time skirmishing was going on and many prisoners were taken. We read: "A small rebel force known as Camp Pratt was six miles out. At 1 A. M. the center section started out on one road to get in its rear. At 4 A. M. the right section with cavalry and part of Cameron's Brigade of the 13th Corps started on another road for the same point. Arriving at daybreak all made an attack on the camp and captured 175 out of 200—twelve of these being officers. While marching them into town two bands came to meet us. One was placed in front, the other in the rear of the prisoners, and so we marched through the town to the tune of our national airs."

About this time Lieutenant Slack of Chelsea of the 13th Massachusetts was placed in command of the left section of the battery in the absence of Lieutenant Snow, who had gone North for recruits. Christmas Day, by exchange of prisoners, Sergeant Burwell and Private Smith, who had been taken at Grand Coteau November 3 were returned to the battery. "They were ragged and dirty, having had a hard time."

The month of December was devoted largely to drilling. Recruits kept coming in and these had to be made into soldiers. Captain Nims instituted a new set of bugle calls, making in all twenty-eight calls a day. January 1, 1864, was the coldest day the men had experienced since leaving home. Snow and rain made camp life uninviting and difficult. Nevertheless reenlistments were in order, and at this time several of the boys entered upon another three years' service.

Early in the year the force was moved out to Franklin, half way to Brashear City, and there made winter quarters. The roads thither were in terrible condition—deep with mud and water with a frozen crust on top, and three days were required to travel a distance of 23 miles. The horses were in poor condition from lack of hay and grain and only a limited supply of corn, and five died from exhaustion on this short trip. Here three months were spent in camp, the men taking possession of the cabins formerly occupied by the negroes, who had long since gone to the contraband camp in New Orleans.

Much time was given to the drilling of recruits, while about 25 of the men who had reënlisted were given furloughs of 30 days.

A copy of the program of an evening's entertainment at the Cooper Institute (an old cooper's shop fitted up) will doubtless recall pleasant memories of camp life the winter of '63-'64.

COOPER'S INSTITUTE

FRANKLIN, LA.

A Grand Entertainment wilt be given at the above place on Friday, March 4, 1864, by the members of Nims' Battery, under the direction of the following committee: A. B. Burwell, President; J. F. Robertson, Secretary; C. B. Maxwell, Manager.

COMMITTEE

W. Kane, L. W. Swan, A. N. Norcross, C. Dubois, W. D. Butts, D. Murray, J. S. Knowlton, H. T. Bates and W. G. Hidden.

The committee take great pleasure in announcing to their friends, that the following distinguished Artists have generously volunteered their services. A sufficient number of Special Police will be in attendance to enforce good order.

Music by Knowlton and Co.'s Military Band.

Doors open at 6: commence at 7: terminate at 10.

Carriages ordered at half-past 9.

PROGRAM

Grand Introductory Overture	Band
Jig Dance	J. Comfort
Sabre Exercise	Dubois and DeFlanders
Sparring	Flemming and Ferrari
Song, The Sword of Bunker Hill	Mr. Wren
Dramatic Readings	McGrath
Feet Sparring	Dubois and DeFlanders
Song, What a Row de dow	T. Kenny
Sparring	Mortimer and Baker
A Little Spouting	Wilkinson and Ward
Cane Exercise	Dubois and DeFlanders
Song, Virginia Rosebud	J. S. Knowlton
Sparring	Ellis and Comfort
Magic Rings	C. B. Maxwell

Song, How are you, Jeff Davis?	T. Kenny
Originality	Mr. Ward
Sabre Exercise	Dubois and DeFlanders
Jig Dance	Mr. Brady
Dramatic Readings	McGrath
Sparring	Connors and Baker
Song, Faded Flowers	J. S. Knowlton
Feet Sparring	Dubois and LeClair
Jig Dance	Mr. Connor
Song	By the Band
Bayonet Exercise	C. Dubois
Sparring	Sullivan and Raymond
Song, I Dream of Home	J. S. Knowlton
Fancy Dance	C. Dubois
Sparring	McGrath and Baker
Grand Walk Around	Comfort, Kenny and Connors
Song, The Cove what Sprouts	B. Connors
Sparring	Mortimer and Connors

Similar entertainments followed and were always given to crowded houses.

On February 7 Lieutenant Russell received appointment as first lieutenant in the 6th Massachusetts Battery where he later received promotion to the rank of captain. During the same month about seventy recruits arrived from Massachusetts, so that drilling appears again as the order of the day. Nor was this time wasted, for it was evident that an army movement was soon to take place.

Early in March preparations were made for the Red River campaign, the object of which was the capture of Shreveport on the Red River, the dispersion of the Confederates in that region and ultimately the recovery of Texas by the line of the Red River. There were serious objections to this route and certain precautionary measures were necessary if the end were to be accomplished, but these were not carried into execution.

As the battery was not brigaded we find it first in one division then another, wherever there was difficult service and danger to be encountered.

The general plan was that Banks with all the forces at his command should march his troops over-land to Alexandria, there to be joined by Gen. A. J. Smith with a force of about 10,000 men, detached from Sherman's army, who were to be transported up the river in company with Admiral Porter's fleet. At the same time it was expected that General Steele would coöperate in the movement with a force of about 15,000 men. As General Banks was obliged to be in New Orleans at this time the arrangements for his part of the movement were entrusted to General Franklin.

General Franklin's forces consisted of the entire 19th Army Corps and the 3d and 4th divisions of the 13th Army Corps, in command of General Ransom, the whole force numbering some 16,000, all under Major General Franklin. The cavalry division of the 19th Army Corps was commanded by Gen. A. L. Lee, and to this division Nims' Battery, equipped as horse artillery, had been assigned.

The troops were supposed to start from Franklin on the 7th of March and arrive at Alexandria the 13th, but owing to some delay they were unable to leave until the 13th. On that day General Lee moved with his command in advance of the regular army. His force consisted of the 1st, 3d, 4th and 5th brigades of the cavalry division, Nims' Battery of 6 guns—Rawles' Battery of 4 guns—and a battery of mountain howitzers manned by a company of 6th Missouri Cavalry, all equipped as horse artillery, a total of about 3300. There was a halt the next morning at five for an hour's rest and then on again. Long trying marches followed, 23 miles one day, 30 the next, 20 the next, 30 the next until the 19th of March, when 33 miles were made in 12 hours. Although one section of the battery reached Alexandria the 19th and another the 21st, the whole column did not arrive before the 25th. Here General Banks again assumed command and three days were spent in resting, refitting, and issuing supplies.

It had been intended to carry supplies the whole distance in the attack on Shreveport by water, but the river was so low that not many of the transports could pass and it was found necessary to establish a supply station at Alexandria, and a wagon train to take supplies from the vessels below to vessels above the rapids. To protect this, called for a force of about

3000 men. General Grover was placed in charge of this post and his division left for its defense. The troops on the transport were also unable to pass the rapids and were accordingly recalled to the Mississippi. Consequently, General Banks found himself ready to move out from Alexandria with a force of only about 20,000 men, while he could not expect any coöperation from General Steele. Even at the beginning of April experts foretold the failure of the expedition. The march into the enemy's country began on the 28th of March, and from that time the command was in active service. The Confederates constantly retreated, frequently stopping to skirmish, but offering no serious resistance.

Natchitoches was reached on April 3, the cavalry division camping just outside the town where a halt of a day or two was made. On the 6th the march toward Shreveport was begun at daylight, the battery marching in the center of the division as reserve artillery. In addition to the troops there was a train of 200 wagons carrying ten days' rations for the men, three days' forage, ammunition, and camp equipage. General Lee's orders from General Franklin were "to attack the enemy wherever he could be found but not to bring on a general engagement." No enemy was seen that day. The next morning the march was renewed until on reaching Wilson's Farm, three miles from Pleasant Hill, a considerable Confederate force was found posted in the woods on a hill. An engagement ensued between the enemy and the third brigade with two sections of the Missouri and Illinois batteries. The resistance was so strong that the 1st Brigade was advanced as support, and with this, two sections of Nims' Battery. Owing to the dense woods the battery, although at the front, could not go into action and was ordered into position with the 4th Brigade, Colonel Dudley, in line of battle in the rear. With the aid of the reinforcements the enemy was forced to retreat slowly and Colonel Lee and his forces bivouacked five miles beyond the battlefield.

The next day came the terrible experience of Sabine Cross Roads or Mansfield as it is sometimes called, where the battery met with disaster for the first time.

On that day, April 8, the battery started in the advance—with the 1st Brigade, under Colonel Lucas, and a Brigade of the 4th division of the 13th Army Corps, Colonel Landram commanding, which had been sent forward during the night. Following this came the 4th Brigade Cavalry, Colonel

Dudley in command, and then the 5th Brigade, under Colonel Robinson, in charge of the long wagon train and the artillery which was not in the front. By noon an advance had been made of about ten miles, the enemy contesting every foot of the way. The woods on each side of the road were very dense, which made it difficult to move in line and the marching was tedious and tiring to the men. Almost no water was to be found. At this time General Ransom arrived with the 2d Brigade of the 13th Army Corps to relieve the 1st Brigade of its duty.

About four miles from Mansfield the road ran through a clearing in front of a hill of considerable height where the timber was not quite so thick as it had been elsewhere. This point was chosen as the scene of the engagement. A description of the arrangement of troops may be taken from Colonel Lee's report:^[14]

"Two regiments of the 4th Brigade Cavalry, Colonel Dudley, were placed on the flank, deployed in the woods. The Second Illinois Cavalry formed a half mile in rear of the first line. Nims' Battery was placed in position at the crest of the hill, in and to the right and left of the road. A section of the Sixth Missouri Howitzer was placed at its left. A brigade of infantry was placed in the front, one regiment to the left of Nims' Battery, the others to the right. A second brigade was placed on our right flank, facing the enemy who appeared in that direction. The First Brigade Cavalry, Col. T. J. Lucas commanding, was placed on the extreme right of the line and fought dismounted. With this brigade was a section of the 6th Missouri Howitzer Battery and a section of Rawles' Battery. The Third Brigade was in the rear escorting the train which was halted a mile and a half from our front."

About 1 p. m. General Banks and his staff arrived and General Lee reported to him the arrangements of his troops and the apparent position and strength of the enemy and his opinion that the army must either fall back or be reinforced by infantry. General Banks gave orders that the position should be maintained and at the same time sent to General Franklin to hurry forward the infantry.

About 4.30 the enemy, made a general attack in front and right flank, driving infantry and cavalry back to the line where the battery was stationed. The guns of the battery were being fired as rapidly as possible with double charges of canister, and although many of the men were

recruits, having had no experience under fire, every one of them stood up to his work as bravely as the veterans.

When, however, the infantry support failed (except for the 23d Wisconsin and 19th Kentucky), orders were given to retire in order that the guns might not fall into the hands of the enemy. Three of the guns had to be left on the field as the horses had been killed. At the foot of the hill a stand was made, but the rout had become so general that the battery could not maintain its position and was almost surrounded by the enemy. Orders were therefore given to retreat.

About a mile from the battlefield was the wagon train of the cavalry division, which had become blocked in the ruts and mud and entirely obstructed the narrow road.

The road was so obstructed at this point and the rush of retreating forces so great that it became necessary to abandon the remaining three guns, together with caissons, baggage-wagons, battery wagon and forges.

To account for the position of the cavalry train we quote from the report^{[\[15\]](#)} of Col. John G. Chandler, acting chief quarter-master.

"Both General Franklin and General Lee wanted the cavalry train to move in the rear of the infantry force, but they disagreed as to the precedence of position when the trains should be joined. General Lee desired that his train should precede General Franklin's infantry train, and the latter insisted that the infantry trains should move in the rear of the infantry force. Because of this disagreement no change was made on the day of the engagement."

We give here an account of the engagement as taken from the records of C. B. Maxwell and J. S. Knowlton:

"At 6 A. M. we started for the advance, marched three miles and came upon a large force of the enemy under Dick Taylor. Two brigades of the 13th Army Corps were sent to us as reinforcements and formed a line of battle, acting as skirmishers. The enemy commenced slowly falling back but closely contending every inch of ground, and in this way we drove them ten miles. At Sabine Cross Roads the enemy made a stand in the woods before which was a clearing of some 75 acres where our cavalry manoeuvred. The enemy was very strongly reinforced at this point. At the extreme front was a hill 50

yards in diameter upon which our six guns were placed. The 4th Brigade of cavalry was on our left with two of the 6th Missouri Howitzers.

"About three o'clock General Banks and his staff arrived. General Lee, on seeing General Banks dismount, saluted and said: 'I am confident, General, that we have a powerful force in front and if we make the attack I am confident we shall be repulsed.' General Banks made no reply, but it was noticed he looked serious. All the staff officers with those of General Lee were sent hurriedly to right, left and rear. About 4 P. M. General Banks' chief of staff rode along our left to where the third piece stood and said to me (Maxwell), 'Call your men, load your gun and point it down the road. If you see anyone crossing where the road enters the wood, open fire. Don't wait for further orders.' In less than fifteen minutes the enemy were sneaking across the road and the third detachment obeyed orders. The battle was on. We soon discovered men coming out of the woods much nearer than those down the road, so we fired to the front and right until they came to point-blank range and then we fed it to them with double-shotted canister. Although the battle was very severe, we received no reinforcements except the 3d division of the 13th Corps. Owing to the superior force of the enemy, our cavalry and infantry were driven back, leaving the hill on which our six guns were planted with out support of 23d Wisconsin and 19th Kentucky to fight nearly alone.

"Our guns belched forth double-shotted canister and the enemy in front, eight deep in line, suffered terribly at each discharge. Wide gaps were opened in their ranks but were immediately filled up again. Finally, all the horses on three of our guns were killed, making it impossible to remove the guns from the field. The remaining three guns being out of ammunition retired to the foot of the hill where our caisson lay, filled up with ammunition and went into position. By this time infantry and cavalry had become completely routed and were fleeing to the rear. Our officers tried to rally them but in vain. Finding it impossible to save the guns, our officers ordered us to slip our traces and save our lives if possible, which the men did reluctantly. Our wagon train had been pushed forward before the engagement, completely blocking the road, making a retreat impossible. During the night we fell back to Pleasant Hill, a distance of 13 miles, and in the morning our company assembled under Lieutenant Greenleaf. We had lost our guns and everything we possessed except the clothes we had on."

The loss of the battery in this battle was very severe. Lieutenant Snow was shot through the left lung and left on the field. Private Reardon was killed. Lieutenant Slack was wounded, 18 men were wounded, of whom five were taken prisoners, together with seven unwounded men. Besides the loss of guns and caissons, 82 of the battery's horses were either killed or wounded. In spite of the terrible defeat and loss, the battery won great praise for its indomitable courage and for the way it handled its guns, for we read in the report of Col. J. W. Landrum,^[16] "It is proper to say that Captain Nims' Battery displayed throughout the whole of the fight an example of coolness and true courage unsurpassed in the annals of history. They are entitled to highest commendation, and although they lost their guns it is due to them to say that they could not have prevented it, and that the damage they inflicted on the enemy was such as to entitle them to the thanks of the whole army."

Another quotation is from the Lacon, Ill., *Gazette*,^[17] "Nims' Battery worked manfully—the veteran battery, hero of seventeen engagements, all successful, but doomed this time to defeat. They double charged their guns with canister and adding a bag of bullets mowed the enemy down only to have their places filled by the advancing hordes." Again, "Nims' splendid battery with its honorable record on every field from Baton Rouge to Port Hudson was taken by Walker's men." *Irwin*.

Brig. Gen. W. H. Emery, commanding First Division of the 19th Army Corps, had been notified of the state of affairs and had been ordered to advance as rapidly as possible and form a line of battle in order to support the retreating troops and check the advance of the enemy. He took his position at Pleasant Grove about three miles from Sabine Cross Roads, the First Brigade, General Dwight, being placed across the road upon which the enemy was advancing. Waiting until the enemy was within close range they poured a tremendous volley along the whole front, causing it to fall back. The action lasted for an hour and a half, then darkness coming on there was a cessation of hostilities. During the night the entire army retired to Pleasant Hill, where a battle was fought the next day, but in which the battery naturally took no part. The struggle, however, was desperate and sanguinary. The defeat of the enemy was complete and their loss in officers and men more than double that sustained by the Union forces.

It was a sorry looking company of men that gathered at Pleasant Hill the next morning—the remnant of "the finest battery in the army." Guns,

caissons, wagon and supplies lost—nothing left but the clothes the men wore. As for blankets, one rubber and one woolen blanket had to do for five men, while half rations only made one all the more hungry.

The next day the remaining men were assigned to guard the ammunition train on the retreat to Grand Ecore, which was reached on the 10th. Here the Union army gathered its scattered battalions.

As the members of the battery were without equipment, they were ordered to New Orleans, and on the 19th went on board the little steamer *Meteor*, arriving at New Orleans on the 22d, where they remained until the 10th of May. During their stay in New Orleans occurred an event which showed the pleasant relation existing between the members of the battery and its commander. The following quotation is taken from the *New Orleans Era* of April 26, 1864.

PRESENTATION OF A SWORD TO CAPTAIN ORMAND F. NIMS, 2d MASSACHUSETTS LIGHT HORSE ARTILLERY

Yesterday afternoon was the occasion of quite a little surprise party at the quarters of the 2d Massachusetts Light Horse Battery. Captain Nims was presented with a magnificent sword, sash and belt, by the non-commissioned officers and men who still represent the original members of this fine command, and who have long wished for an opportunity of expressing in some such manner their appreciation of the constant care and watchfulness for their welfare exhibited at all times and under all circumstances by Captain Nims, as well as to present a lasting memento of their respect and affection for their beloved commander. It was but a well-merited tribute to sterling worth. This splendid sword was manufactured by Tiffany & Co., of New York, and is one of the finest ever got up by that firm. The presentation speech, made by Joshua F. Robertson, was as follows:

"Captain, I have been requested by the members of this command to say a few words on presenting you this token of our high esteem. It is now nearly three years since you took command of this battery, and I am confident, sir, that I express the sentiments of us all when I say that we have never had cause to regret, but much rather to rejoice, that you have commanded the 2d Massachusetts Battery. Your example as a soldier and a gentleman, your example on the battlefield and in camp, your forbearance and leniency towards us, your kind attention to many of us during the long and tedious hours of sickness, have endeared you to us by ties of friendship which we trust may never be forgotten. Those members of the battery who, in the first campaign in this Department, fell victims to disease contracted in the swamps opposite Vicksburg, and who now sleep beside the honored dead at Baton Rouge and in the cemeteries of this city—methinks that if our shrill morning reveille could but awake them, they would reiterate what I now say, that you, by your constant watchfulness, kindness and attention, did all that lay in human power to alleviate their sufferings. In asking you to accept this sword, we know that it will never be drawn but in the cause of freedom, in which we are all battling, and never will be sheathed in disgrace. In after years, when this wicked rebellion shall have been crushed, and should it be our good fortune to return with you to our fair New England homes, we hope this memento we now present you will at least serve to remind you of the pleasant associations and the many trying scenes through which we have passed. In conclusion,

let me say, sir, that you will ever bear with you the best wishes of every man under your command, and we hope that hereafter, in what position soever you may be placed—whether in command of the 2d Massachusetts Battery or in a higher station—the same good feeling may exist between you and those under your command that has ever existed between yourself and the members of this battery."

REPLY

"Fellow Soldiers of the 2d Massachusetts Battery—I cannot express to you the feelings of surprise and astonishment with which the present occasion had filled me. I need not remind you that I am no speech maker, for you are well aware that I am a man of but few words. I fear, however, that you have overrated the little it has laid in my power to do for your comfort, welfare and efficiency. But of one thing, I feel conscious, gentlemen, and that is, that I have endeavored to do my duty by you, by my country, and by myself. Rest assured that I shall ever look upon the present as one of the happiest moments of my life, and that your highly prized gift shall never be drawn but in the cause of freedom and of our common country. Accept, gentlemen, my sincere and heartfelt thanks."

The boys dispersed to their quarters with six rousing cheers for Captain Nims, who, truth to say, was almost overpowered by his feelings, so completely was he taken by surprise.

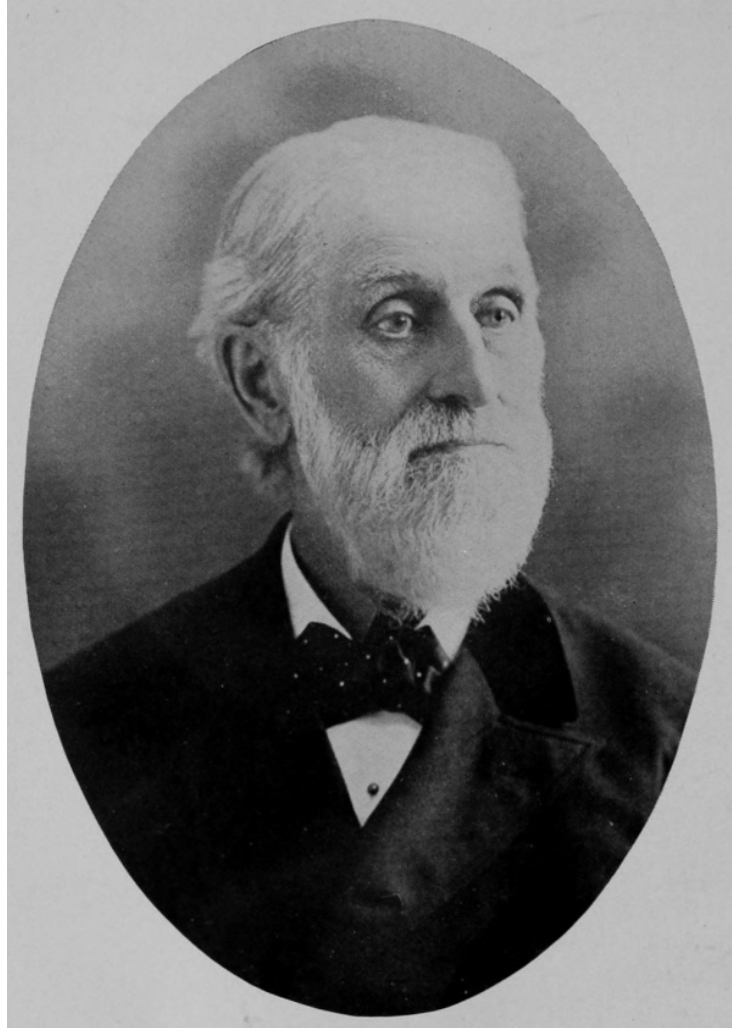
We also quote the Special Order No. 1 issued April 28, as still further indicating the honor given to the battery by commander and other officers.

SPECIAL ORDER NO. 1

"The commandant takes this method of congratulating his command upon the part which they took in the engagement at Sabine Cross Roads, La., on the 8th inst., and of thanking them not only for himself, but also in behalf of the general commanding the division, and the general commanding in the field, for the gallantry, courage, and efficiency with which you conducted yourselves in the trying position in which you were placed. Although it has been your misfortune to lose your guns, it is gratifying to know that it was through no dereliction or shortcoming on your part; having done all that lay in your power as brave men to do. We must submit to the misfortune with the best grace we may. Your commandant would also express his satisfaction at the sorrow exhibited on all hands at your misfortune, by officers of every grade in the service as well as by civilians, which tends to show in a clearer light the golden opinions you have won on all hands. Your commandant is proud not only at the battle of Sabine Cross Roads but in every other battle in which you have been engaged. He gives the credit all to you, and hopes you will continue to deserve the high encomiums so universally bestowed upon you and to maintain in all places, whether in camp or in the field, your good name untarnished."

Per Order,

CAPTAIN NIMS.



Ormand F. Nims

While in New Orleans still another presentation took place. This time a handsome pistol and equipments were presented to Captain Nims by members of the battery who were not included in the first presentation. A few words may be quoted from a paper giving an account of this event: "It is quite refreshing to observe the almost fatherly care and affection for his men exhibited by Captain Nims and the respect,—we had almost said adoration—combined with the most perfect discipline on the part of his men for their beloved commander."

On the 10th of May the battery was transported to Carrollton, where an outfit of light guns and horses was furnished them to be used in defense of New Orleans. All troops quartered in New Orleans were ordered to

Carrollton because of the smallpox which was raging in the city. Private Marsh of the 2d Battery died of this disease at the United States Hospital on May 13. On the 18th of June, Lieutenant Snow and the other members of the battery taken at Sabine Cross Roads arrived at New Orleans, having been lately paroled. Two, however, had died of their wounds, Privates Maxwell and Howarth.

During the stay a handsome guidon was presented to the members of the battery by Massachusetts friends then residing in New Orleans. This guidon was presented by Captain Nims to Governor Draper on June 9, 1910, and may be seen at the State House in the Hall of Flags. It is of a golden bronze color, and on it are the crossed cannon of the battery, the words Second Massachusetts over the state shield and the names of twelve battles in which the battery took part: Vicksburg, Baton Rouge, Irish Bend, Vermillion Bayou, Port Hudson, Clinton, Carrion Crow Bayou, Grand Coteau, Vermillionville, Indian Bend, Wilson's Farm, Sabine Cross Roads.

As the time of enlistment of the original members was about to expire and as new recruits were coming in, the battery was divided into two divisions known as the Old and the New Companies. The veterans were relieved from nearly all military service while the recruits with new guns and equipments spent much of their time in drill.

While the men were waiting for transportation North, Captain Nims was ordered to Boston on recruiting service, and on July 27 he started North leaving Lieutenant Greenleaf in command of the original battery.

On July 31 they went aboard the United States Mail Steamer *Matanza* and started down the river, the whole company singing "Home Sweet Home." All along the homeward route the men were greeted with public demonstrations of esteem and appreciation. They arrived in Boston August 9, the company consisting of 78 men and two officers, Second Lieut. J. W. Greenleaf being the only officer present, save Captain Nims. They were met at the station by Captain Nims and Captain Cummings of the Boston Light Artillery, with a detachment of the company, and were taken to the United States Hotel, where a handsome breakfast was served. They were then escorted through the principal streets, arriving at the Armory about one o'clock. Here a grand dinner was had, after which Mayor Lincoln welcomed the veterans home in a few brief and cordial words. Captain Nims

responded in an appropriate manner and the men were then furloughed until the 16th.

On that day they met at the Armory, delivered the flags to Captain Nims to be put in the State House, and were mustered out of the United States service August 16, 1864.

While this marks the end of the history of the original Nims' Battery, as 23 of the original number had reënlisted and recruits had been received from time to time, the organization of the 2d Massachusetts was continued. Transportation was taken on the 2d of September for Morganza, where the battery encamped for the winter. The monotony of this encampment was varied by scouting expeditions in which the various sections took part.

Meanwhile, Captain Nims had opened recruiting head-quarters in the North and soon secured enlistments enough to fill existing vacancies, and in December was on his way back to the seat of action. Lieutenant Snow, who had been weakened by his wounds and captivity, was discharged November 30, and on the 7th of January, 1865, Captain Nims resigned his commission. Lieutenant Marland was promoted to fill the vacancy, the other lieutenants were advanced, and the second lieutenancies were filled by the promotion of First Sergeant Louis W. Swan and Sergeant Jacob M. Ellis, both of Boston.

The battery was next ordered to report to General Steele for active service, and accordingly arrived at New Orleans on March 7, where it took transport for Barrancas, Fla., arriving there on the 10th. After waiting about a week it began its march through the woods and swamps of Florida toward Mobile. Rain fell most of the time and the mud was unfathomable. Fighting its way from point to point wherever troops could fight, the battery finally reached Fort Blakely on April 2. It was necessary to take this point before proceeding to Mobile, and after waiting a few days the place was finally taken by assault on April 9, 1865. After the fall of Fort Blakely the battery started with a column of infantry and cavalry toward Claiborne, Ala. Its last serious conflict was at Daniel's Landing on the 11th.

For the next seven weeks the battery was almost constantly on the march until men, horses, and mules were completely worn out. Late in May, Columbus, Miss., was reached. The men were sent to Mobile and then on to

Vicksburg, which they reached on June 4. Since landing in Florida they had traveled over 1600 miles.

The company encamped at Vicksburg till July 22, when it turned its equipment over to the United States authorities and set out for home.

Boston was reached on the 4th of August, the men encamping on Galloupes Island till the 11th, when they were paid and discharged.



Old Nims Homestead at Deerfield, Mass.

NIMS' BATTERY ASSOCIATION

After over three years of association in camp and field the ties of comradeship among the members of the battery were too strong to be ignored and the mustering out of the original members had hardly severed the official bond than preparations were begun for the formation of an organization to be known as Nims' Battery Association. On December 10, 1864, a meeting was called at the Webster House, at which time this association was organized and officers elected.

The preamble to the constitution as given in the first secretary's book is as follows:

"Associated as we have been together for the past three years both in camp and on the field of battle, bound together by more than brotherly ties, we should feel grateful for our safe return and proud to know that we once constituted a battery that knew no superior in style or action.

"Therefore we the undersigned do organize an association for our mutual benefit and do hereby adopt the following rules and regulations to secure good order and to determine our rights, duties and privileges as members of said association."

The officers chosen at this time were: President, Henry E. Brown; Vice-President, George E. Ham; Secretary, P. J. Mayer; Treasurer, William D. Butts.

As the vice-president and secretary declined to serve, these offices were filled at a subsequent meeting by the election of C. B. Maxwell, Vice-President; J. S. Knowlton, Secretary.

It was voted that regular meetings should be held monthly and the place of meeting was to be at Evans Hall, Tremont Row.

The early records of the association give only a hint of the life of the organization, but we will indicate a few incidents that may be of interest to the surviving members.

On March 27, 1865, we find that the battery attended as a body the grand mass meeting of the Veterans' Union held in Tremont Temple, while on June 1 at a grand procession in Boston it appeared on parade with badges and drum corps and bearing the colors carried by them during the war. A letter from Captain Nims, who was then in New Orleans, in reply to a request for the colors is incorporated in the records and may well be quoted here.

"Your note dated April 4 came to hand yesterday morning requesting the loan of the company colors on all important occasions, once the colors borne by the noble old 2d Massachusetts Battery which I am ever proud to call mine. In answer I will say that it gives me great pleasure through the representative of the association to tender the use of the colors on all important occasions. Knowing well the past conduct of the members of the association, I have no fear for the care and protection of the colors while under their charge. Wishing all prosperity and happiness I subscribe myself

"Respectfully your humble servant,

"O. F. NIMS."

Although few fatalities occurred on the field or in camp among the members of the battery, the first year at home brought death to some of the number, among whom were Comrade J. C. Tate, who died on April 16, 1865, and Comrade Charles W. Green, who died on June 25 of the same year. In both instances the battery paid the last sad honors to its former comrades and in one case gave material aid as well. We also find under the date August 6, 1866 resolutions on the death of A. Barsantee, another one of the boys.

The first social event in the history of the association was a grand ball held about the first of March, 1865. Other balls followed, and indeed they seem to have become annual affairs kept up for some time; for in a newspaper clipping we read: "The seventh annual ball of Nims' Battery Association took place last evening at Boylston Hall. As the members of this association bear an enviable reputation in matters of this kind the hall was filled with a very good humored and sociable company.... These balls always afford a good opportunity for old comrades to meet and enjoy social intercourse and pleasant reminiscences."

As time went on and other duties and interests became more imperative, the monthly meeting at Evans Hall was no longer deemed advisable and Colonel Nims kindly tendered the use of a room at 80 Cambridge Street, where the association property could be kept and meetings held. This offer was accepted and the change made on July 15, 1867.

We have no records as to where and when the first annual banquet took place. We find, however, an interesting account of the fourth annual banquet taken from the *Boston Journal*, undated, which is as follows:

"The fourth annual reunion of the Nims' Battery Association was held last evening in the parlors of the American House. About 40 members were present, most of them men who went out at the first and stayed at the post till the battery was mustered out of service. General William Schouler was the invited guest on this occasion.

"After an hour's social intercourse the meeting was called to order by the President, Col. O. F. Nims.

"The committee appointed to consider the matter of the preparation of the history of the battery reported that little progress had been made. Some material had been collected but more funds were needed. The matter was discussed quite freely, with the prevailing opinion that the work should be completed and published.... After dinner was served, General Schouler was called upon and said he was glad to meet Colonel Nims and his old command and would only say what was said of them when at the front that this battery was one of the best, if not the best, that went from Massachusetts.... The regular toasts were then announced."

Our Country—response by Mr. Thomas Knights who sang America.

Massachusetts—response by Captain Marland.

Nims' Battery—response letter from Col. H. E. Paine, etc.

Another interesting meeting was held on December 12, 1879. "It was the first gathering of the old organization which had occurred for five years and fully 40 members were present accompanied by several of the 13th Battery. The early part of the evening was spent in social intercourse, singing of songs, and the election of officers. The after dinner exercises included speeches, reminiscences of camp life and interesting facts concerning the association since the close of the war. Letters of regret were received from

many prominent members of the old battery and from Col. H. E. Paine of the 4th Wisconsin Regiment."

Other notable occasions were the reunion at the home of Comrade John G. Dimick, Worcester, where the hospitality of the host and his wife made the meeting especially delightful, and the 25th anniversary in 1890 when nearly fifty of the boys together with Generals Dudley and Kimball and Past Deputy Commander Billings as guests gathered at the call of the bugler to a feast of good things and an evening of fellowship and army stories.

In 1888 the Nims' Battery Ladies' Social Club was organized and since that date has held its meetings annually at the time of the battery reunion. Its members are the mothers, wives, and daughters or indeed any relative of the men of the battery and its purpose is not solely social but mutually helpful as well. It aims to visit the sick among the members, to give material aid if necessary and in any way possible assist the organization to which it is auxiliary.

The annual reunions were at first held on February 22, but in recent years this date has been changed to April 19.

As the years have passed the grim reaper Death has appeared more and more often and the ranks have gradually thinned until in 1912 only 14 of the regular members were present at the annual reunion.

To those who remain, however, the memories and associations of more than a half century ago are still precious, and form a bond which will be broken only when life itself shall cease.

LIFE OF COL. ORMAND F. NIMS

A history of the 2d Massachusetts Light Artillery will hardly be regarded as complete unless it contains a sketch of the life of its commander, Capt. Ormand F. Nims.^{[\[18\]](#)}

From the time of the early settlement of America down to the last war in which the United States has been engaged, the Nims family has participated in the offensive and defensive campaigns of the country save only in the war with Mexico. Indeed it may truly be said that the commander of Nims' Battery came of good fighting stock. The family of Nims is descended from the old Huguenots of France, coming from that part of the country where is situated the city Nismes, from which is derived the family name de Nismes, or as it is now written Nims. Godefroi de Nismes, or as known here, Godfrey Nims came to this country in the 17th century, the first mention of his name being found in the records of Northampton under the date September 4, 1667. He was in Turner's Fight, May 18, 1676 and was a soldier in King Philip's War. He was twice married. His first wife was Mary, daughter of William Miller and widow of Zebadiah Williams. His second wife was Mehitabel, daughter of William Smead and widow of Jeremiah Hall. He had six children by his first wife and five by the second. Rebecca (died young), Rebecca, John, Henry, Thankful, Ebenezer, Thomas, Mehitabel, Mary, Mercy and Abigail. The family of Godfrey Nims were victims of that terrible Indian tragedy which resulted in the destruction of Deerfield, Mass., to which place Mr. Nims had moved in 1686. This calamity occurred February 29, 1704. On that fatal day, Mrs. Nims was captured and was slain on the way to Canada. Her dwelling was destroyed by fire. The eldest surviving daughter, then Mrs. Mattoon, was slain, together with an only child, Henry; the eldest son was captured and slain. Ebenezer, the second son, was captured and carried to Canada. Mehitabel, Mary and Mercy were burned with the house. Abigail, the youngest was captured at the age of four years and carried to Canada, where she married

another captive, Josiah Rising, then christened Ignace Raizeune, received a permanent home, and a large domain.

It does not appear that Godfrey Nims was captured at this time. The suggestion has been made that he was with a military company elsewhere. An inventory of his estate was taken at Deerfield, March 12, 1704, or 5, the presumption being that he had died there just previously.

Ebenezer and John were the two surviving sons of Godfrey. John has many descendants in Michigan and other parts of the West. Ebenezer was carried to Canada as was also another captive, Sarah Hoyt. These two were married in Canada and had there one son also named Ebenezer. They were redeemed by Stoddard and Williams with difficulty in 1814 and returned to Deerfield, where four more sons were born, David, Moses, Elisha, Amasa. David, son of Ebenezer, was born at Deerfield, March 30, 1716 and died in Keene, July 21, 1803. He came to Keene while a boy and was appointed scribe by the proprietors July 25, 1737. At the first town meeting after the town was chartered by New Hampshire which was held May 2, 1753, he was elected first town clerk and after that held some town office nearly every year till 1776. In 1740, he was granted 10 acres of upland in Keene, for hazarding his life and estate by living in the place to promote the settlement of the township. Still later he was granted 104 acres in that part of Keene, which is now in the town of Roxbury. This estate is at present occupied by David Brigham Nims, his great great-grandson. He had ten children one of whom Asahel fell at the battle of Bunker Hill. "On the morning when Captain Wyman and his men left Keene for Massachusetts, Asahel came into town from his home on the Sullivan Hills where he was clearing land and getting ready to settle with one whom he hoped soon to marry. He saw the military movement and was fired with that spirit of military and patriotic fervor which has been such a characteristic of the Nims family. One fellow who had enlisted did not have the courage to start. Asahel consented to take that fellow's place and lost his life in his first battle. He was buried on the battlefield and his name is recorded on one of the gates of Bunker Hill Park."

Zadok, another son and the grandfather of Col. Ormand Nims fought at Lake Champlain, and it is a tradition concerning him that at this time he became so exhausted that his commander and comrades believed him dead.

They were preparing his body for burial, when to their delighted surprise he came to his senses and afterward fully recovered.

Col. Ormand F. Nims was born in Sullivan, N. H., August 30, 1819, his father, Philander Nims, being a farmer in that vicinity and his mother, the daughter of Col. Solomon White of Uxbridge, Mass.

Colonel White served seven years in the War for Independence and later commanded a Massachusetts regiment at the head of which he marched to Worcester at the time of Shay's Rebellion. An uncle, Frederick Nims, served during the War of 1812 performing creditable military service.

Ormand Nims was twenty-three years old when he left the farm in Sullivan and came to Boston, where in 1854 he bought a drug store on Cambridge Street and set up in business for himself. His first taste of a military career had been when, a boy of fifteen, he had joined the Sullivan Militia commanded by his brother. In 1853 he with his two brothers joined the Lancers and this branch of the militia of Massachusetts had no more ardent members than these three young men from New Hampshire.

It happened that about this time General Sherman's Battery of United States artillery came to Boston from Newport for the purpose of giving an exhibition in encampment, parade, and drill on Boston Common. Young Nims saw the drill and was delighted; after this nothing would do for him but the artillery.

Early in 1854 he enlisted in a new battery raised under command of Capt. Moses G. Cobb, and was made first sergeant on the night of his enlistment. After three years of service, he was made fourth lieutenant and later received command of the battery. During his term of command he made this battery famous for its efficiency and perfect organization.

"I resigned from my command in 1860," said Colonel Nims in an interview some years since, "and my last appearance with it, my last parade in fact, was on the occasion of the review on Boston Common by the Prince of Wales, the late King Edward, who was on a visit to America."

Then came the Civil War. The battery with which Colonel Nims had been connected was among the first to volunteer and although he was not a member he rendered efficient aid in equipping and drilling the men, accompanying them as far as New York when they started on active service.

Just as he took the train, a prominent official said to him, "Nims, we will have six guns ready for you when you return."

The organization of the 2d Massachusetts and its service in the field has already been recorded in the pages of this book and this naturally includes the military career of its captain.

A few quotations may serve to show the more personal side of Colonel Nims and the relations existing between the commander and his men.

The following extract is from a letter written by an officer while at Franklin, La. "Captain Nims is the hardest working officer I ever saw, always looking out for the interests of the battery and the men. Hardly ever in his quarters, nothing escapes his observation. He is a man of strict probity and has none of the minor vices, always reliable and reminds one of the hero Garibaldi. Although proud of his battery and its reputation, and pleased at anything written or said in its praise, he thoroughly detests personal flattery and indeed I would not venture to say this much to him for my commission."

A quotation from the Boston *Transcript* at the close of the war: "It is a remarkable fact that during the three and a half years that Captain Nims commanded the 2d Battery, punishment was to its members almost unknown. Splendid discipline was maintained solely by *esprit de corps* and by the respect and affection entertained for the commander on one hand and by the fatherly care and solicitude always exhibited by Captain Nims for his men under all circumstances. The slight mortality by disease in this battery is attributed by the members to the efficiency of their leader."

Some years after the war a niece of Colonel Nims was visiting in the South and dined at the home of a former Confederate captain. She was told that at one time during the war, orders were given to the Confederate officers to kill Captain Nims at any cost as his battery was inflicting so much damage upon their forces.

After the discharge of the original Nims' Battery at the end of three years, Captain Nims immediately secured enough enlistments for another battery and at once returned to New Orleans. But an injury to his ankle received while he was at home to muster out his men, and the fact that most of his boys were no longer with him led him to resign his commission and accept a position in the Chief Quarter-Master's department at New Orleans, where

he remained till after the close of the war. After peace had been fully restored and the work of reconstruction had been begun, Captain Nims returned to Boston and bought back the little drug store he had left at the beginning of the war, where he remained for nearly a half century until at the age of ninety he retired from business, in 1910. After the return of peace the attention of the government was directed to Captain Nims' services and on March 13, 1865, by special enactment of the Senate he received the titles of "Brevet Major—Brevet Lieutenant-Colonel—and Brevet Colonel, for gallant and meritorious service during the war," thus explaining the title Colonel Nims.

After leaving the army, Colonel Nims took almost no part in military or political affairs—except in connection with Nims' Battery Association and for a short time serving as commander of Post 7, G.A.R. He was also a member of the Loyal Legion. He would never accept a pension. To quote his own words on the subject, "I don't want a pension. It doesn't seem right to me that a man should be paid by the Federal government simply because he was in the army. I served my country to the best of my ability and I don't want any pay for it either. If one were incapacitated for earning a living that would be a different matter."

During the half century that Colonel Nims maintained his drug store at the West End he saw many changes in that neighborhood. Someone has said that he served the poor and needy from his little store as faithfully as he ever served his country in the days of the war. Everyone in that section regarded him as a friend and helper, and he was always ready to give aid to those who needed it. He made it a practice to give away one prescription at least, every day. If the families of any of his men were in need, it was his delight to care for and assist them.

Colonel Nims died at his home, 42 Blossom Street, on May 23, 1911, at the age of 91 years. His funeral was held at Trinity Church on May 25 and was attended by the remaining members of the battery and by members of the Loyal Legion together with many friends who honored and loved him. He was buried in Mount Hope Cemetery.

A Christian patriot and soldier.

ROSTER OF SECOND MASSACHUSETTS BATTERY

SECOND BATTERY LIGHT ARTILLERY, M. V.—(THREE YEARS.) (From
Record of Massachusetts Volunteers.)

<i>Name and Rank.</i>	<i>Age.</i>	<i>Residence or Place Credited To.</i>	<i>Date of Muster.</i>	<i>Termination of Service.</i>
Nims, Ormand F., Capt.	..	Boston	July 31, '61	Jan. 7, 1865, resigned.
Marland, William, Capt.	29	Andover	Jan. 8, '65	Aug. 11, 1865, exp. of service, B't Maj.
Walcott, John W., 1st Lieut.	39	Roxbury	July 31, '61	Dec. 18, 1861, resigned.
Bigelow, John, 1st Lieut.	21	Cambridge	July 31, '61	Dec. 18, 1861, resigned.
Trull, George G., 1st Lieut.	30	Boston	Dec. 18, '61	Oct. 21, 1862, Captain 4th Battery.
Hall, Richard B., 1st Lieut.	23	Boston	Dec. 18, '61	July 29, 1863, resigned.
Marland, William, 1st Lieut.	27	Andover	Oct. 22, '62	Captain Jan. 8, 1865.
Snow, Warren K., 1st Lieut.	29	Boston	July 30, '63	Nov. 30, 1864, disability.

Greenleaf, Joseph W., 1st Lieut.	34	Boston	Dec. 1, '64	Aug. 11, 1865, expiration of service.
Hodgdon, Lucian A., 1st Lieut.	33	Somerville	Jan. 8, '65	Aug. 11, 1865, expiration of service.
Trull, George G., 2d Lieut.	29	Boston	July 31, '61	First Lieut., Dec. 18, 1861.
Hall, Richard B., 2d Lieut.	22	Boston	July 31, '61	First Lieut., Dec. 18, 1861.
Marland, William, 2d Lieut.	26	Andover	Dec. 18, '61	First Lieut., Oct. 22, 1862.
Snow, Warren K., 2d Lieut.	27	Boston	Feb. 21, '62	First Lieut., July 30, 1863.
Russell, Edward K., 2d Lieut.	30	Chelsea	Oct. 22, '62	Oct. 3, 1863, First Lieut., 6th Battery.
Greenleaf, Joseph W., 2d Lieut.	32	Boston	July 30, '63	First Lieut., Dec. 1, 1864.
Hodgdon, Lucian A., 2d Lieut.	31	Somerville	Oct. 3, '63	First Lieut., Jan. 8, 1865.
Swan, Louis W., 2d Lieut.	30	Chelsea	Dec. 1, '64	Aug. 11, 1865, expiration of service.
Ellis, Jacob M., 2d Lieut.	26	Melrose	Jan. 8, '65	Aug. 11, 1865, expiration of service.
Jackman, Henry A., Q. M. Sergt.	34	Boston	Jan. 6, '64	Aug. 11, 1865,

Norcross, Alden N., Q. M. Sergt.	32	Boston	July 31, '61	expiration of service. Aug. 16, 1864, expiration of service.
Burwell, Augustus B., 1st Sergt.	26	Chelsea	July 31, '61	Aug. 16, 1864, expiration of service.
Chamberlain, Lowell A., 1st Sergt.	22	Malden	July 31, '61	Dec. 16, 1861, promotion.
Cheever, Henry P., 1st Sergt.	34	Boston	July 31, '61	1862, disability.
Downing, Matthias, 1st Sergt.	30	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Greenleaf, Joseph W., 1st Sergt.	32	Boston	July 31, '61	Second Lieut., July 30, 1863.
Hodgdon, Lucian A., 1st Sergt.	31	Somerville	July 31, '61	Feb. 15, 1864, re- enlistment.
Hodgdon, Lucian A., 1st Sergt.	33	Boston	Feb. 16, '64	Second Lieut., May 21, 1864.
Jordon, William W., 1st Sergt.	31	Boston	Jan. 6, '64	Sept. 30, 1864, 1st Lieut. 3d Un. Co. H. Art.
Russell, Edward K., 1st Sergt.	30	Chelsea	July 31, '61	Second Lieut., Oct. 22, 1862.

Snow, Warren K., 1st Sergt.	27	Boston	July 31, '61	Second Lieut., Feb. 21, 1862.
Swan, Louis W., 1st Sergt.	32	Boston	Feb. 16, '64	Second Lieut., Dec. 1, 1864.
Allen, John W., Sergt.	24	Boston	Feb. 16. '64	Aug. 11, 1865, expiration of service.
Ellis, Jacob M., Sergt.	28	Boston	Feb. 16, '64	Second Lieut., Jan. 8, 1865.
Fisk, John D., Sergt.	28	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Harvey, Orlando C., Sergt.	24	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Hodgkins, John P., Sergt.	27	Gloucester	Dec. 7, '63	Aug. 11, 1865, expiration of service.
Jordan, William W., Sergt.	29	Boston	July 31, '61	Jan. 5, 1864, re-enlistment.
Kane, William, Sergt.	20	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Lincoln, Silas S., Sergt.	35	Maiden	July 31, '61	Aug. 16, 1864, expiration of service.

Livermore, Converse F., Sergt.	26	Watertown	July 31, '61	Aug. 16, 1864, expiration of service.
Partridge, Samuel, Sergt.	29	Boston	Jan. 6, '64	Aug. 11, 1865, expiration of service.
Swan, Louis W., Sergt.	30	Chelsea	July 31, '61	Feb. 15, 1864, re-enlistment.
Ward, John B., Sergt.	27	Boston	Dec. 1, '63	Aug. 11, 1865, expiration of service.
Whitcher, Frank J., Sergt.	21	Boston	July 31, '61	Dec. 17, 1861, Sec. Lieut. 1st Md. Bat'y.
Wilkins, Robert J.	27	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Ackerman, Joseph R., Corp.	32	Boston	July 31, '61	Deserted Jan. 1, 1862.
Andrews, Erastus E., Corp.	28	Sunderland	Dec. 2, '63	Aug. 11, 1865, expiration of service.
Bellows, Frederick A., Corp.	44	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Butts, William D., Corp.	27	Charlestown	July 31, '61	Aug. 16, 1864,

				expiration of service.
Dickenson, Daniel O., Corp.	18	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Downing, Matthias, Corp.	28	Boston	July 31, '61	Feb. 15, 1864, re- enlistment.
Ellis, Jacob M., Corp.	26	Melrose	July 31, '61	Feb. 15, 1864, re- enlistment.
Evans, Elbridge, Corp.	29	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Foster, Thomas B., Corp.	22	Boston	Feb. 16, '64	Died June 6, 1865, New Orleans, La.
Green, Charles W., Corp.	26	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Ham, George E., Corp.	26	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Hodgkins, Frederick T., Corp.	21	Gloucester	Dec. 7, '63	Aug. 11, 1865, expiration of service.
Hodgkins, Morris, Jr., Corp.	40	Gloucester	Dec. 7, '63	Aug. 11, 1865, expiration of service.

Howe, Francis E., Corp.	27	Melrose	July 31, '61	Jan. 8, 1863, disability.
Kane, James H., Corp.	23	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Knowlton, Joseph S., Corp.	25	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Knowles, Osgood W., Corp.	25	Boston	July 31, '61	Aug. 16, 1804, expiration of service.
Leavitt, Edwin L., Corp.	29	Boston	Oct. 10, '61	Died Aug. 5, 1862, Baton Rouge, La.
Maxwell, Charles B., Corp.	29	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Merrill, Charles, Corp.	28	Chelsea	Mar. 4, '64	Aug. 11, 1865, expiration of service.
Oliver, Charles E., Corp.	22	Lunenburg	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Sherman, Charles F.	20	Watertown	July 31, '61	Aug. 16, 1864, expiration of service.
Short, John F., Corp.	28	Lowell	Aug. 10, '64	Aug. 11, 1865,

				expiration of service.
Smith, John R., Corp.	26	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Sylvester, Charles S., Corp.	18	Gloucester	Dec. 7, '63	Aug. 11, 1865, expiration of service.
Swart, John W., Corp.	22	Pittsfield	Jan. 5, '64	Aug. 11, 1865, expiration of service.
Tyler, Thomas R., Corp.	24	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Wadsworth, George W., Corp.	..	Quincy	July 31, '61	Sept. .., 1861, disability.
Wadsworth, Henry M., Corp.	23	Boston	July 31, '61	Sept. 30, 1861, disability.
Welch, Henry, Corp.	21	Pittsfield	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Whitmore, Benjamin F., Corp.	26	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Wilkins, Robert J., Corp.	25	Boston	July 31, '61	Feb. 15, 1864, re-enlistment.

Hodgdon, Moses, Bugler	19	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Hughes, John, Bugler	22	Barnstable	Jan. 25, '64	Died July 23, 1865, Vicksburg, Miss.
O'Grady, Joseph, Bugler	24	Quincy	July 31, '61	Aug. 16, 1864, expiration of service.
Brown, Henry E., Artificer	34	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Cobb, Cyrus W., Artificer	35	Malden	July 31, '61	Dec. 5, 1862, disability.
Gould, Reuben B. H., Artificer	43	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Hatch, Seth H., Artificer	41	Boston	July 31, '61	Feb. 14, 1864, re- enlistment.
Hatch, Seth H., Artificer	43	Somerville	Feb. 15, '64	Aug. 11, 1865, expiration of service.
Haven, Joseph S., Artificer	28	Boston	July 31, '61	Died July 31, 1862, Baton Rouge, La.
Jacobus, Peter, Artificer	40	Boston	July 31, '61	

Stevens, Simeon, Wagoner	39	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Allen, Henry B.	27	Gloucester	Dec. 7, '63	Died June 30, 1864, New Orleans, La.
Allen, John W.	22	Boston	July 31, '61	Feb. 15, 1864, re- enlistment.
Allis, Newton R.	36	Buckland	Sept. 14, '64	Aug. 11, 1865, expiration of service.
Andrews, Edwin A.	25	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Anthony, Charles S.	29	Taunton	Sept. 2, '64	June 11, 1865, expiration of service.
Annis, David	36	Taunton	Sept. 6, '64	Transferred Dec. 23, 1864 to 6th Battery.
Avery, Daniel P.	21	Boston	Nov. 20, '62	Dec. 25, 1863, re- enlistment.
Avery, Daniel P.	23	Danvers	Dec. 26, '63	Deserted Jan. .., 1864.
Avery, James T.	21	Colrain	Sept. 3, '64	June 11, 1865, expiration of service.

Barsantee, Alphonso	29	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Barrett, Charles H.	21	Boston	Jan. 20, '64	Deserted, never joined Battery.
Barney, Edward F.	23	Southborough	July 31, '61	Aug. 16, 1864, expiration of service.
Barton, Frederick N.	18	Heath	Aug. 30, '64	June 11, 1865, expiration of service.
Barnes, Henry Q.	22	Boston	July 31, '61	Died Aug. 14, 1862, New Orleans, La.
Bartlett, Hiram	24	Charlestown	Dec. 11, '62	Aug. 16, 1864, expiration of service.
Bates, William T.	22	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Bellew, John	40	Boston	Jan. 12, '64	Aug. 11, 1865, expiration of service.
Benoit, Nazar	18	Hadley	Jan. 4, '64	Died Apr. 18, 1864, New Orleans, La.
Bicknell, Ira S.	37	Charlestown	Sept. 8, '62	Apr. 20, 1863,

Blaisdell, Clark	23	Waltham	Feb. 15, '64	disability. Aug. 11, 1865, expiration of service.
Blanchard, George E.	21	Chelsea	Mar. 16, '64	Aug. 11, 1865, expiration of service.
Bolton, Joseph F.	..	Quincy	July 31, '61	Apr. 16, 1862, civil authority.
Bolton, William	21	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Braman, John W.	18	Hadley	Jan. 4, '64	June 15, 1865, expiration of service.
Brigham, Francis O.	27	Needham	July 31, '61	Aug. 16, 1864, expiration of service.
Brown, Edwin W.	35	Boston	July 31, '61	Sept. 17, 1862, disability.
Brown, Francis G.	25	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Brown, James	35	Truro	Feb. 24, '64	Feb. 28, 1864, rejected recruit.

Brown, James L.	41	Boston	Dec. 17, '63	Dec. 24, 1863, rejected recruit.
Brown, Joseph F.	35	Rowe	Aug. 30, '64	June 11, 1865, expiration of service.
Brown, J. M.	29	Quincy	July 31, '61	
Brown, William	25	Raynham	Jan. 4, '64	Deserted, never joined Battery.
Bryant, Zeba H.	34	N. Bridgewater	Sept. 3, '64	Transferred Dec. 23, 1864, to 6th Battery.
Buck, Orsemus L.	39	Boston	Jan. 12, '64	Aug. 11, 1865, expiration of service.
Bullard, Revel	37	Rowe	Aug. 30, '64	June 11, 1865, expiration of service.
Burns, William	38	Boston	Nov. 28, '63	Dec. 15, 1863, disability.
Bushman, Leander	21	Hadley	Jan. 4, '64	Drowned, Dec. 18, 1864, from str. <i>N. America</i> .
Butler, Levi T.	24	Boston	July 31, '61	Feb. 15, 1864, re-enlistment.

Butler, Levi T.	26	Boston	Feb. 16, '64	Transferred June 21, 1864, to Navy.
Buxton, Richard F.	21	Lunenburg	Dec. 31, '63	July 18, 1865, expiration of service.
Call, Levi E.	20	Colrain	Sept. 3, '64	June 11, 1865, expiration of service.
Carpenter, Francis L.	21	Taunton	Dec. 12, '64	Aug. 11, 1865, expiration of service.
Carter, John F.	24	Boston	July 31, '61	Jan. 16, 1864, disability.
Carroll, John, Jr.	21	Barnstable	Sept. 2, '64	June 11, 1865, expiration of service.
Carney, Joseph	26	Reading	Dec. 9, '63	Aug. 11, 1865, expiration of service.
Caswell, Joseph L.	23	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Chadbourne, Bradford H.	38	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Chase, Stephen J.	44	Boston	Jan. 8, '64	Aug. 11, 1865,

Childs, Ralph	42	Colrain	Sept. 6, '64	expiration of service. June 11, 1865, expiration of service.
Clayton, Herbert	21	Boston	Feb. 3, '64	Aug. 11, 1865, expiration of service.
Clark, James	32	Somerville	Mar. 18, '64	Deserted, never joined Battery.
Clogston, Luman	25	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Cobb, James M.	23	Charlestown	July 31, '61	Apr. 2, 1864, disability.
Coffey, James	25	N. Bridgewater	Sept. 3, '64	Transferred Dec. 23, 1864 to 13th Battery.
Conley, John	40	Bridgewater	Sept. 2, '64	Aug. 11, 1865, expiration of service.
Corcoran, Michael H.	30	Boston	Jan. 1, '64	Aug. 11, 1865, expiration of service.
Cowdrey, Nathaniel	38	S. Reading	Jan. 1, '64	Aug. 11, 1865, expiration of service.

Craig, George	21	Barnstable	Sept. 1, '64	June 11, 1865, expiration of service.
Crockett, William H.	30	Boston	July 31, '61	Oct. 18, 1862, disability.
Cruise, William	18	Southampton	Jan. 1, '64	Aug. 11, 1865, expiration of service.
Curtis, Edmund B.	36	Abington	Sept. 3, '64	Transferred Dec. 23, '64 to 6th Battery.
Curtis, Frederick N.	29	Medford	July 31, '61	Jan. 5, 1864, re-enlistment.
Curtis, Frederick N.	31	Medford	Jan. 6, '64	Aug. 11, 1865, expiration of service.
Cushing, Lyman F. W.	19	Medford	July 31, '61	Aug. 16, 1864, expiration of service.
Dalton, John	21	Rockport	Aug. 27, '64	June 11, 1865, expiration of services.
Davis, Benjamin P.	21	Boston	July 31, '61	
Davison, Cyrus	31	Boston	July 31, '61	Died Aug. 3, 1862, Baton Rouge, La.
Davis, Frederick A.	43	Bridgewater	Feb. 23, '64	Feb. 28, 1864, rejected recruit.

Davis, James H.	21	Colrain	Sept. 5, '64	Transferred Dec. 23, 1864 to 6th Battery.
Davis, Robert W.	28	Somerville	Jan. 5, '64	Aug. 11, 1865, expiration of service.
Day, Samuel C.	32	Gloucester	Dec. 8, '63	Aug. 11, 1865, expiration of service.
Dennis, John	30	Cohasset	Aug. 31, '64	June 11, 1865, expiration of service.
Dewey, William C.	26	Colrain	July 9, '64	Aug. 11, 1865, expiration of service.
Doe, William F.	22	Meredith, N.H.	July 31, '61	Aug. 16, 1864, expiration of service.
Dollard, John	21	Greenwich	Sept. 15, '64	Transferred to 13th Battery.
Dow, Joseph E.	37	Chelsea	July 31, '61	Oct. 18, 1862, disability.
Downs, Thomas J.	23	Boston	Jan. 14, '64	Jan. 17, 1864, rejected recruit.
Donahue, John M.	22	Cohasset	Aug. 29, '64	Aug. 11, 1865, expiration of service.

Donahue, Thomas	24	N. Bridgewater	Dec. 3, '64	Transferred Dec. 23, '64, to 6th Battery.
Drury, James	42	Boston	Jan. 1, '64	Jan. 3, 1864, rejected recruit.
Duggan, Edmund B.	19	Southampton	Jan. 1, '64	Aug. 11, 1865, expiration of service.
Duprey, Edwin	23	Boston	Sept. 5, '64	Aug. 11, 1865, expiration of service.
Eastman, William H.	22	Melrose	July 31, '61	Aug. 16, 1864, expiration of service.
Eldridge, Ellery W.	19	Chelsea	July 31, '61	Aug. 16, 1864, expiration of service.
Elliott, James E.	18	Blackstone	Mar. 1, '64	Mar. 3, 1864, rejected recruit.
Elmer, Spencer W.	20	Heath	Aug. 30, '61	June 11, 1865, expiration of service.
Evans, Elbridge	27	Charlestown	July 31, '61	Feb. 15, 1864, re-enlistment.
Farnum, Charles G.	43	Boston	Dec. 28, '63	Aug. 11, 1865,

				expiration of service.
Ferren, Loren	19	Taunton	Sept. 3, '64	June 11, 1865, expiration of service.
Fickett, William	22	Duxbury	Jan. 21, '61	Died Aug. 19, 1865, Gallop's Island.
Fillebrown, Henry A.	23	Waltham	July 31, '61	Aug. 16, 1864, expiration of service.
Finnegan, Bernard	28	Boston	Mar. 14, '64	Aug. 11, 1865, expiration of service.
Fisk, John D.	26	Southbridge	July 31, '61	Feb. 15, 1864, re- enlistment.
Flemming, Nathaniel	28	Charlestown	Dec. 7, '63	Deserted Oct. 18, 1864, New Orleans, La.
Fletcher, John W.	23	Billerica	July 31, '61	
Flynn, Thomas	45	Charlestown	Dec. 12, '63	Aug. 11, 1865, expiration of service.
Folsom, Ezra F.	26	Truro	Jan. 11, '64	Died May 24, 1864, Baton Rouge, La.

Forbes, John A.	34	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Foster, Edward	32	Boston	Dec. 5, '63	Deserted, never joined Battery.
Foster, Thomas B.	20	Stoughton	July 31, '61	Feb. 15, 1864, re-enlistment.
Foulds, John	19	Taunton	Sept. 2, '64	June 11, 1865, expiration of service.
Foye, William E.	18	Braintree	Sept. 3, '64	Aug. 11, 1865, expiration of service.
French, Loring A.	39	Quincy	July 31, '61	Aug. 16, 1864, expiration of service.
Galloway, Charles	25	Waltham	June 23, '64	June 11, 1865, expiration of service.
Gannon, Cornelius	22	Truro	Feb. 24, '64	Aug. 11, 1865, expiration of service.
Garrett, William	21	Lowell	July 31, '61	Transferred Sept. 1, 1861, to 17th M. V.
Gibson, Edward	22	Boston	Mar. 14, '64	Deserted, never joined

Gill, John E.	21	Taunton	Sept. 5, '64	Battery. Transferred Dec. 23, 1864, to 13th Battery.
Gleason, Samuel K.	30	Heath	Aug. 30, '64	June 11, 1865, expiration of service.
Goodrich, Edward C.	22	Lunenburg	Dec. 31, '63	Aug. 11, 1865, expiration of service.
Goodwin, William H.	20	Weymouth	July 31, '61	Feb. 15, 1864, re- enlistment.
Goodwin, William H.	22	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Glover, Edward W.	26	Maiden	July 31, '61	Oct. .., 1862, disability.
Grover, Fitzroy	19	Chicopee	Aug. 31, '64	June 11, 1865, expiration of service.
Haggerty, John	26	Pittsfield	Jan. 18, '64	Deserted, never joined Battery.
Hall, Arthur W.	18	Heath	Aug. 30, '64	June 11, 1865, expiration of service.
Hale, Russell	19	Gardner	July 2, '64	Aug. 11, 1865,

				expiration of service.
Haley, Samuel, Jr.	21	W. Boylston	July 31,'61	Sept. .., 1862, disability.
Hammond, Charles	31	Dorchester	July 26, '64	Aug. 11, 1865, expiration of service.
Hamilton, Charles	31	Truro	Jan. 12, '64	Jan. 13, 1864, rejected recruit.
Hamilton, Charles H.	21	Taunton	Sept. 2, '64	June 11, 1865, expiration of service.
Hammond, Daniel M.	19	Charlestown	July 31, '61	Jan. 5, 1864, re-enlistment.
Hammond, Daniel M.	21	Charlestown	Jan. 6, '64	Aug. 11, 1865, expiration of service.
Hamour, George B.	23	Boston	July 31, '61	Apr. 20, 1863, disability.
Ham, James H.	20	Boston	Jan. 14, '64	Transferred June 21, 1864, to Navy.
Harvey, Alexander D.	21	Boston	Oct. 10, '61	Oct. 15, 1864, expiration of service.
Harkins, Daniel	21	Templeton	Jan. 4, '64	Jan. 6, 1864, rejected recruit.

Harvey, George B.	22	Taunton	Sept. 5, '64	Transferred Dec. 23, 1864, to 13th Battery.
Harvey, Joseph R.	22	Boston	July 31, '61	Died Aug. 10, 1862, New Orleans, La.
Hauff, Rudolph	34	Boston	July 31, '61	Died 1863, New Orleans, La.
Hayward, Hampton V.	24	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Hess, Phillip	18	Hinsdale	Jan. 18, '64	Jan. 24, 1864, rejected recruit.
Hidden, William G.	21	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Hill, Augustus E.	34	Phillipston	Dec. 24, '63	Jan. 9, 1864, rejected recruit.
Hobbs, Joseph A.	23	Boston	July 31, '61	Oct. 18, 1862, disability.
Holmes, Elmer W.	22	N. Bridgewater	Sept. 10, '64	Transferred Dec. 23, 1864, to 6th Battery.
Holme, Frederick	32	Boston	, '62	Jan. 5, 1864, re-enlistment.
Holme, Frederick	34	Boston	Jan. 6, '64	Aug. 11, 1865,

				expiration of service.
Houghton, George E.	21	Boston	July 31, '61	June 25, 1862, disability.
Howe, Edwin S.	..	Quincy	July 31, '61	Never joined for service.
Howard, Henry A.	22	Colrain	Sept. 5, '64	Transferred Dec. 23, 1864, to 6th Battery.
Howarth, John H.	19	Boston	Dec. 7, '63	Died of wounds, May 2, 1864, Mansfield, La.
Howard, William R.	25	Malden	July 31, '61	Aug. 16, 1864, expiration of service.
Hubbard, Amos S.	21	Boston	Mar. 3, '64	Aug. 11, 1865, expiration of service.
Hubbard, Stephen L.	28	Charlestown	July 31, '61	Aug. 14, 1863, 2d Lieut. 2d Heavy Art'y.
Hudson, Thomas	36	Boston	Aug. 30, '64	Aug. 11, 1865, expiration of service.

Hurd, Henry	23	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Jackman, Henry A.	32	Boston	July 31, '61	Jan. 5, 1864, re-enlistment.
Jaunotte, Abraham	26	Hadley	Jan. 25, '64	Aug. 11, 1865, expiration of service.
Jeffords, George R.	40	Rowe	Aug. 30, '64	June 11, 1865, expiration of service.
Jennings, Stephen E.	29	Chicopee	July 31, '64	Aug. 11, 1865, expiration of service.
Julian, George N.	20	Exeter, N. H.	July 31, '61	Sept. 13, 1862, Capt. 13th N. H. Vols.
Kelly, Robert N.	23	Boston	Dec. 19, '63	Aug. 11, 1865, expiration of service.
Kelly, Thomas	28	Boston	Dec. 18, '63	Aug. 11, 1865, expiration of service.
Kimball, Martin B.	25	Boston	Oct. 16, '61	Oct. 16, 1864, expiration of service.
King, Phineas F.	26	Watertown	July 31, '61	1862, disability.

Knight, Thomas W.	19	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Knights, William W.	29	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Lamberton, George	42	Sandwich	Mar. 10, '64	July 1, 1864, disability.
Lamb, Hiram K.	46	Boston	July 31, '61	Apr. 15, 1862, disability.
Lancy, Eli S.	32	Lunenburg	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Lang, James	27	Boston	July 31, '61	Feb. 15, 1864, re-enlistment.
Lang, James	29	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Lancour, Louis	37	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Larrabee, George W.	25	Boston	Dec. 18, '63	Died Apr. 16, 1864, New Orleans, La.
Larivere, Jacob	23	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.

Leavitt, James M.	28	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Lemill, Shubael	43	Charlestown	Jan. 5, '64	Deserted, never joined Battery.
Leonard, James L.	22	Taunton	Sept. 5, '64	Transferred Dec. 23, 1864 to 13th Battery.
Leonard, John S.	24	Cambridge	July 31, '61	Died Sept. 29, 1862, New Orleans, La.
Little, Orison	25	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Littlefield, Roger S.	26	Charlestown	July 31, '61	Transferred Sept. 10, 1861, to 18th Regt.
Littlefield, William	..	Quincy	July 31, '61	Never joined for service.
Lombard, Edwin	31	Boston	July 31, '61	Died Aug. 10, 1862, New Orleans, La.
Long, George	28	Neponset	July 31, '61	Aug. 16, 1864, expiration of service.
Longley, Isaac N.	28	Boston	July 31, '61	Aug. 16, 1864, expiration of service.

Loring, John H.	24	Charlestown	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Lovejoy, Alvin G.	31	Somerville	July 31, '61	Died Aug. 3, 1863, Baton Rouge, La.
Lufkin, Russell S.	40	Charlestown	Sept. 8, '62	Aug. 16, 1864, expiration of service.
Lunt, Charles H.	28	Charlestown	Jan. 2, '64	Aug. 11, 1865, expiration of service.
Lyman, Benjamin M.	34	Orange	Feb. 8, '64	Feb. 21, 1864, disability.
Lynch, Charles	24	Boston	July 31, '61	1862, disability.
Macomber, Alexander	21	Boston	Sept. 1, '64	June 11, 1865, expiration of service.
Maphin, James	22	Chelsea	Jan. 8, '64	Transferred Feb. 2, 1864, to 28th Regt.
Marble, Carlos	22	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Marsh, Lewis H.	23	Boston	July 31, '61	Jan. 5, 1864, re-enlistment.
Marsh, Lewis H.	25	Belmont	Jan. 6, '64	Died May 15, 1864, New

Marsh, Rufus D.	18	Hadley	Jan. 4, '64	Orleans, La. Mar. 17, '65, disability.
Marshall, W. Henry	32	Chelsea	Jan. 8, '64	Aug. 11, 1865, expiration of service.
Maxwell, Chauncey H.	24	Boston	July 31, '61	Died May 10, 1864, Mansfield, La.
Mayer, Philip, Jr.	19	Boston	July 31, '61	Apr. 10, 1864, disability.
McCarron, Richard	25	Roxbury	Jan. 18, '64	Aug. 11, 1865, expiration of service.
McCracker, William	35	Boston	Dec. 2, '63	Dec. 20, 1863, disability.
McDonough, Thomas	30	Roxbury	Jan. 18, '64	Aug. 11, 1865, expiration of service.
McGraugh, Patrick	29	Bridgewater	Sept. 1, '64	Transferred Dec. 23, 1864, to 13th Battery.
McKinley, Leonard	30	Charlestown	Sept. 13, '62	Aug. 16, 1864, expiration of service.
McMahon, John J.	24	Rockport	Aug. 29, '64	June 11, 1865,

McNulty, James H.	18	Lowell	Dec. 29, '63	expiration of service. Aug. 11, 1865, expiration of service.
McNally, Michael	21	Hadley	July 7, '64	Aug. 11, 1865, expiration of service.
Meier, Edward D.	22	Taunton	Dec. 30, '63	Sept. 9, 1864, 2d Lieut. 1st La. Cav.
Miller, William	32	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Moody, John F.	22	Bridgewater	Sept. 2, '64	June 11, 1865, expiration of service.
Moody, Joseph	37	Orleans	Jan. 28, '64	Died Jan. 19, 1865, Morganza, La.
Morrison, James T.	35	Boston	Jan. 1, '64	Aug. 11, 1865, expiration of service.
Morton, Lemuel Q.	22	Boston	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Moran, Michael	21	Rockport	Aug. 30, '64	June 11, 1865,

Mousen, Francis	25	Hadley	Jan. 4, '64	expiration of service. Aug. 11, 1865, expiration of service.
Moulton, Harrison	20	Weymouth	July 31, '61	Aug. 16, 1864, expiration of service.
Munroe, Thomas	36	Quincy	July 31, '61	Feb. 7, 1862, disability.
Murray, David	19	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Murphy, Francis	20	Bolton	Dec. 2, '63	Aug. 11, 1865, expiration of service.
Murphy, John	21	Somerville	Mar. 15, '64	Transferred Apr. 23, 1864 to Navy.
Murphy, William J.	26	Boston	Jan. 25, '64	Jan. 28, 1864, rejected recruit.
Newhall, Charles E.	24	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Newcomb, Charles J.	32	Norton	Sept. 17, '64	Aug. 11, 1865, expiration of service.

Newcomb, James	33	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Neil, James A.	19	Northbridge	June 30, '64	Aug. 11, 1865, expiration of service.
Nichols, Robert C.	27	Boston	July 31, '61	Nov. 5, 1862, 2d Lieut. 13th Battery.
O'Conner, Patrick	27	Chelsea	Dec. 31, '63	Aug. 11, 1865, expiration of service.
O'Donnell, Peter	21	Pittsfield	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Owens, Michael	23	Dedham	Feb. 19, '64	Died Aug. ..., 1864, transport <i>Mississippi</i> .
Packard, Addison F.	19	Templeton	Feb. 24, '64	Aug. 11, 1865, expiration of service.
Packard, Charles E.	21	Colrain	Sept. 3, '64	Transferred Dec. 23, 1864 to 13th Battery.
Palmer, Edward A.	22	Charlestown	July 31, '61	1863, promotion.
Palmer, Thomas H.	26	Boston	July 31, '61	Aug. 16, 1864,

				expiration of service.
Parker, Gould E.	22	N. Bridgewater	Sept. 5, '64	Transferred Dec. 23, 1864, to 6th Battery.
Partridge, Samuel	27	Boston	July 31, '61	Jan. 5, 1864, re-enlistment.
Payne, Charles	20	Templeton	Feb. 24, '64	Aug. 11, 1865, expiration of service.
Peck, George W.	19	Taunton	Sept. 5, '64	Transferred Dec. 23, 1864, to 13th Battery.
Peebles, John R.	28	Groton	Nov. 11, '64	Deserted Feb. 17, 1865, Greenville, La.
Pelby, Charles	27	Boston	July 31, '61	Apr. 11, 1862, disability.
Pilkey, Francis	33	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Plymton, Andrew F.	35	Milford	Sept. 5, '64	Transferred Dec. 23, 1864, to 6th Battery.
Potter, Jeffrey M.	21	N. Bridgewater	Sept. 5, '64	Transferred Dec. 23, 1864 to 13th Battery.

Potter, Willis S.	19	Taunton	Sept. 5, '64	June 11, 1865, expiration of service.
Prevoe, Joseph	29	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Presby, Mason W.	30	Boston	July 31, '61	Deserted, Jan. 1, 1862.
Prince, Amasa T.	30	Brighton	Feb. 29, '64	Mar. 3, 1864, rejected recruit.
Price, Theodore H.	38	Boston	July 31, '61	Died July .., 1862, Vicksburg, Miss.
Ray, Charles	23	Boston	July 31, '61	Nov. 1, 1861, disability.
Richer, William	18	Boston	Jan. 8, '63	Deserted July 1864, Greenville, La.
Riordon, Hugh	23	Lenox	Jan. 5, '64	May 16, 1865, expiration of service.
Riordon, Timothy	21	Pittsfield	Jan. 4, '64	Killed Apr. 8, 1864, Sabine Cross Roads.
Riordon, William	35	Pittsfield	Feb. 29, '64	Aug. 11, 1865, expiration of service.

Robertson, Joshua F.	34	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Robertson, John H.	18	Colrain	Sept. 3, '64	June 11, 1865, expiration of service.
Roberts, Thomas E.	23	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Rooney, James	37	Boston	Aug. 30, '64	Aug. 11, 1865, expiration of service.
Russell, David	28	Ashby	Sept. 3, '64	June 11, 1865, expiration of service.
Ryder, Henry F.	23	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Richardson, Christopher C., Jr.	21	Haverhill	Nov. 15, '64	Aug. 11, 1865, expiration of service.
Russell, Isaac H.	23	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Sampson, Charles H.	18	Boston	Dec. 21, '63	Aug. 11, 1865, expiration of service.

Sanborn, Charles O.	24	Medford	Feb. 1, '62	Jan. 31, 1865, expiration of service.
Sanborn, Cutler D.	21	Medford	July 31, '61	June 27, 1862, disability.
Sargent, Russell B.	36	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Schroder, Charles H.	18	Boston	Dec. 31, '63	Jan. 4, 1864, rejected recruit.
Scott, Rufus P.	24	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Seavy, Leonard C.	24	Saco, Me.	July 31, '61	Aug. 16, 1864, expiration of service.
Seaward, William	21	Duxbury	Jan. 21, '64	Aug. 11, 1865, expiration of service.
Sebeane, Silas	32	Hadley	Jan. 4, '64	
Senter, Charles H.	28	Lynn	July 31, '61	
Shaw, James	25	Charlestown	Sept. 8, '62	
Skilton, Samuel P.	22	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.

Snow, David W.	27	Colrain	Sept. 5, '64	Transferred Dec. 23, 1864 to 6th Battery.
Smead, John	22	Colrain	Aug. 31, '64	June 11, 1865, expiration of service.
Smith, James	21	Brighton	July 31, '61	Jan. 5, 1864, re-enlistment.
Smith, James	23	Boston	Jan. 6, '64	Aug. 11, 1865, expiration of service.
Smith, John	40	Roxbury	Sept. 15, '64	Aug. 11, 1865, expiration of service.
Smith, Stephen F.	31	Orleans	Jan. 28, '64	Died Nov. 1, 1864, New Orleans, La.
Spaulding, Joseph	44	Boston	Jan. 16, '64	Aug. 11, 1865, expiration of service.
Spaulding, Winfield S.	19	Boston	Aug. 16, '64	Aug. 11, 1865, expiration of service.
Spiller, James W.	36	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Stevens, John E.	31	Melrose	July 31, '61	Aug. 16, 1864,

				expiration of service.
Stimpson, Jefferson	38	Boston	Jan. 25, '64	Jan. 25, 1864, rejected recruit.
Stone, Calvin	27	Boston	July 31, '61	Feb. 15, 1864, re- enlistment.
Stone, Calvin	29	Boston	Feb. 16, '64	Aug. 11, 1865, expiration of service.
Stone, Royal W.	33	Rowe	Aug. 30, '64	Jan. 30, 1865, disability.
Sullivan, Daniel	35	Boston	Jan. 30, '64	Transferred Aug. 27, 1864, to 165th N. Y. V.
Sullivan, Michael H.	20	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Sweet, George D.	21	Agawam	July 31, '61	Aug. 16, 1864, expiration of service.
Sweet, George W.	34	Taunton	Sept. 2, '64	June 11, 1865, expiration of service.
Tate, James C.	36	Charlestown	July 31, '61	Aug. 11, 1864, expiration of service.

Tate, John M.	19	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Tate, Moses F.	47	Charlestown	July 31, '61	Died Aug. 10, 1862, New Orleans, La.
Taylor, John	33	Quincy	July 31, '61	May 20, 1863, disability.
Thayer, Frederick L.	28	Taunton	Sept. 2, '64	June 11, 1765, expiration of service.
Thomas, David	38	Abington	Sept. 6, '64	Transferred Dec. 23, 1864 to 6th Battery.
Thompson, Otis T.	30	Charlestown	Nov. 1, '61	Oct. 31, 1864, expiration of service.
Thompson, Peter	35	Somerville	July 31, '61	Aug. 16, 1864, expiration of service.
Thibault, Cileste	32	Hadley	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Thurber, James F.	18	Swanzy	Dec. 14, '64	Aug. 11, 1865, expiration of service.
Thrasher, Henry A.	27	Boston	July 31, '61	Aug. 16, 1864, expiration.

Tierney, Michael	24	Quincy	July 31, '61	Aug. 16, 1864, expiration.
Tilton, Daniel P.	33	Chelsea	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Tirrell, David J.	44	Boston	July 31, '61	Nov. 1, 1861, disability.
Tracy, Wayne B.	23	Boston	July 31, '61	Aug. 16, 1864, expiration of service.
Trundy, Justin H.	23	Ashby	Sept. 3, '64	June 11, 1865, expiration of service.
Tucker, James R.	24	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Vaughn, Samuel T.	27	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Viles, Daniel F.	21	Waltham	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Walcott, Aaron F.	25	Boston	July 31, '61	Transferred Dec. 6, 1861 to 3d Battery.
Wallace, Alexander	27	Charlestown	Sept. 8, '62	Aug. 16, 1864,

				expiration of service.
Walker, Eugene C.	27	Brookline	Feb. 12, '64	Aug. 11, 1865, expiration of service.
Walker, John S., Jr.	18	Boston	Jan. 20, '64	Aug. 11, 1865, expiration of service.
Walsh, Yates	26	Boston	Feb. 2, '64	Transferred to 4th Battery.
Walton, William W.	27	Taunton	Feb. 17, '64	June 11, 1865, expiration of service.
Warner, Charles J.	19	Deerfield	Jan. 1, '64	Aug. 11, 1865, expiration of service.
Watkey, Edward	23	Boston	July 31, '61	Sept. 23, 1861, disability.
Wheeler, Howard O.	22	Boston	Jan. 4, '64	Aug. 11, 1865, expiration of service.
Whitmore, Benjamin F.	24	Boston	July 31, '61	Feb. 15, 1864, re- enlistment.
Whitcomb, Frederick	28	Somerville	Jan. 1, '64	Aug. 11, 1865, expiration of service.

White, Henry J.	22	N. Bridgewater	Sept. 5, '64	Transferred Dec. 23, 1864, to 6th Battery.
White, John	40	Boston	Dec. 6, '62	Aug. 16, 1864, expiration of service.
Whitney, John H.	21	Brookline	Feb. 12, '64	Aug. 11, 1865, expiration of service.
White, Leonard N.	27	Stoughton	July 31, '61	Sept. 10, 1861, disability.
Whittemore, Peleg B.	40	Taunton	Sept. 2, '64	June 11, 1865, expiration of service.
White, Thomas	35	Charlestown	Sept. 10, '62	Aug. 16, 1864, expiration of service.
Wield, John	31	Charlestown	July 31, '61	Aug. 16, 1864, expiration of service.
Wiggins, John R.	23	Chelsea	Jan. 5, '64	Aug. 11, 1865, expiration of service.
Williams, Charles	25	Chelsea	Aug. 5, '64	Aug. 11, 1865, expiration of service.

Williams, Enos L.	21	Taunton	Sept. 5, '64	Transferred Dec. 23, 1864, to 13th Battery.
Wilson, William H. H.	25	Colrain	Sept. 5, '64	Transferred Dec. 23, 1804, to 6th Battery.
Woodward, Elias T.	29	Taunton	Sept. 5, '64	Transferred Dec. 23, 1864, to 6th Battery.
Woodward, Warren	34	Taunton	Sept. 2, '64	June 11, 1865, expiration of service.
Young, Phillip S.	45	Wenham	Feb. 29, '64	July 28, 1864, disability.

Footnotes

- [1.](#) See Off. Records, Vol. 5, p, 431.
- [2.](#) See The Mississippi, J. V. Greene.
- [3.](#) See Lossing's History of the Civil War.
- [4.](#) Off. Rep., Vol. 15, p. 39.
- [5.](#) This is evidently incorrect as Captain Nims was in the hospital and Lieutenant Trull in charge.
- [6.](#) Putnam's Record of the Rebellion, Vol. 5, p. 307.

- [7.](#) Off. Rec., Vol. 15, p. 46.
- [8.](#) See The Mississippi; F. V. Greene.
- [9.](#) See Off. Record, Vol. 15, Report General Grover.
- [10.](#) Nineteenth Army Corps, p. 136.
- [11.](#) See Lossing's History of Civil War.
- [12.](#) Off. Records, Vol. 26, p. 361.
- [13.](#) Off. Records, Vol. 26, p. 358.
- [14.](#) Off. Rec., Vol. 34 p. 451.
- [15.](#) Off. Rec., Vol. 34 p. 238.
- [16.](#) Off. Rec. Vol. 34 p. 293.
- [17.](#) Putman's Record of the Rebellion, Vol. 8.
- [18.](#) The facts concerning the early history of the Nims family have been taken from addresses given by Rev. J. L. Seward, D.D., Keene, N. H.

Transcriber's Notes:

Missing or obscured punctuation was corrected.

Typographical errors were silently corrected.

*** END OF THE PROJECT GUTENBERG EBOOK HISTORY OF THE
SECOND MASSACHUSETTS BATTERY (NIMS' BATTERY) OF LIGHT
ARTILLERY, 1861-1865 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.